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Bhair Dar University Law Faculty

Distance Education Degree Program

Criminal Law I

Module I

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Introduction

Dear distance student, welcome to your study on the Ethiopian Criminal Law study. Criminal law is one of the most interesting and practical area of law that should properly studied by those who aspire to join the legal profession. Taking into account the importance of the course two semesters are allotted to the study of Criminal Law. Accordingly, the material that is prepared for this course is consisted of two modules which will be studied in the respective semesters. In preparing the module, an attempt has been to discuss principles, issues, concepts and cases in a very simplified fashion so that you can manage to grasp them by your own. To enable you evaluate yourself on the progress that you have made in your reading, miscellaneous questions are provided at the end of each Chapter.

Enjoy your study

Yonas Tesfa

CHAPTER ONE

GENERAL INTRODUCTION TO THE STUDY OF CRIMINAL LAW

Introductory Remarks

One may not successfully study the subject matter of criminal law without having properly appreciated the nature, functions and basic principles of criminal law. In the course of exploring criminal law regard shall be had to the historical development of the same. For this reason, this chapter will provide a fair account of the nature, functions and basic principles of criminal law together with its historical development.

Objective

Having successfully studied this chapter, you will be able:

- to define crime and criminal law
- identify basic features of criminal law
- analyze the distinction between criminal law and other law,
- explain the functions of criminal law in general
- discuss the historical development of criminal law in general and Ethiopian criminal law in particular
- explain aims and goal of Ethiopian criminal law
- list down, analyze and illustrate the basic principles of Ethiopian criminal law

1.1 Nature of Criminal Law

In order for human beings to pursue their goals in orderly and predictable manner, there shall be a law which deals with persons who refuse to play by rules and seek their own advantage by violating other's interests. Special blame shall be attached to those who knowingly harm other persons. Their blameworthiness consists of the combination of two factors. Not only do they act to cause harm or at least with the likely result of causing harm, but also they act with an attitude of disregard for the others' interest,

The act of these individual is contrary to the standard of behavior which society, requires to be observed and the breach of them an offence not merely against the person who intones but against the public therefore there shall be a law which will punish those who deliberately put themselves outside the law and in opposition to society's interest. This law is what is commonly referred as criminal law or general law

1.1.1. Definition of Criminal Law

One needs to come up first with a definition of crime in order to define criminal law. Unfortunately, however, there is no precise and uniformly applicable definition of crime so far. A number of scholars of criminal law have attempted to articulate universally accepted definition of crime. Nevertheless, they failed to do so. Let's see some of attempted definitions crime and sort out common elements incorporate in those definitions.

The known legal lexicon, Blackstone defines crime as,

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a violation of the public rights and duties due to the whole community considered as a community.

This definition depicts crime as a wrong done to public interest. However, it fails to take into account the legal consequence the violation may ensue.

Another attempted definition of crime goes as follows.

Crime is a breach of duty imposed by law for the benefit of the community at large and a wrong whose sanction is punitive and is no way remissible by any private person.

As per this definition, crime refers to a violation of a law which imposes a duty in the interest of the society at the pain of punishment and since the violation is believed to have caused a harm to benefit the society, the punishment or the liability of the actor is not left at the discretion of the individual victim. However, this definition fails to false crimes which are punishable upon compliant.

In some criminal law literature, crime has also been defined as;

an unlawful act or default which is an offence against the public and renders the person guilty of the act liable to legal punishment.

According to this definition crime is an act contrary to what is prohibited or prescribed by law in the interest of the public and the commission or the omission of which entails punishment.

The above three attempted definitions of crime share one thing common. That is a crime is violation or breach of a law which is enacted to safeguard public interest. And the last two definition has introduced the punishment aspect of

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crime which is lacking in the first definition. Based on the above attempted definitions of crime, we can define crime as a conduct or behavior which is prohibited and punishable by law for it is against the interest of the society.

Every society has its own interest that it requires to be observed. These interests could be political, economic, religious, moral social cultural etc. In view of protecting these interests, conducts or behaviors which go against either of these interests shall be prohibited by law at the pain of punishment. Such legally prohibited conducts are crimes as long as they are sanctioned by punishment.

Therefore what makes a certain conduct or behavior a crime is the fact it is prohibited by law and sanctioned by law for the reason that it is against a public interest. However, it should be noted that public interest varies from time to time and from place to place. As a result what was a crime at one time may not be crime at another time. Similarly what is a crime at one place may not be a crime at another place.

Having in mind the definition of crime that we have derived earlier on, let's see what is criminal law is all about. Crime has been defined as a conduct or behavior which is prohibited and punishable by law for it is against the interest of the society. Accordingly, criminal law can be defined as a field of law that describes criminal conducts or behavior and prescribes punishment for them. Thus criminal law is expected to define acts which constitute crimes and prescribe appropriate punishment which may be imposed on wrongdoers when they are found to have guilty of committing crimes.

1.1.2. Distinction between criminal law and other field of laws

As you could remember from your study of the course on Introduction to Civil Law and Law of Person course, law is supposed to govern the behavior of human beings in a given society. It has been said that human beings are not only

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political animal but also social animals. As such, they interact each other in pursuing their individual and common interests. With the view to avoid or lessen conflicts of interest that may arise in the course of interaction, their rights and duties shall be determined by law.

In General sense, therefore, law is supposed to govern relationships and interactions of human beings in a given society by determining their respective rights and duties, Depending on the rights and duties that it defines and governs, law is classified in to civil and public law.

Civil law is concerned with the rights and duties of civil individuals towards each other, whereas, public law is concerned with the rights and duties the violation of which is believed to have affect on the society at large. Since criminal law deals with a violation of the public rights and duties due to the whole society considered as a society it belongs to public law.

Criminal law differs from other laws which fall under the category of civil law. Those branches of civil law, i.e., contract, tort law, property law, family law are concerned with establishing order and cooperation, not with handling disorder and cooperation. By contrast, criminal law is not all about coordination rather prohibitions since it defines the kind of conduct that disorganize social bonds.

The most obvious formal distinction between criminal law and civil law lies on the fact that a violation of a criminal law is assumed to cause an injury to the interest of the society while the violation of civil law is considered to cause an injury to private individuals. As a result violators of criminal law are prosecuted by the public prosecutor representing the society while those who violate civil law is to be sued by the aggrieved individual at his own discretion.

The other glaring difference lies on the fact that, criminal law, unlike civil law, entails punishment where there is a violation of the law. Of course, a wrongdoer

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may also be held liable for violating a civil law. However, his liability is restricted to payment of damages only. Where as a wrongdoer who violates a criminal law will be liable to punishment. And the punishment represents the “formal and solemn pronouncement of the moral contamination of the community” on the wrongdoer.

1.2 Functions of Criminal Law

If there are persons who refuse to play by the rules and seek their own advantage violating other interests, it will be very hard for people living in such society to lead peaceful life. Peace, order, security must be ensured in for every one living in a give society to pursue his life in orderly and predictable manner. To this end, some thing should done to those persons who violate certain standards of behavior which the society requires them to be observed and the breach of them is not only against the person who is injured but against the public.

Thus, criminal law should do something about those persons whose antisocial behavior is a damage and menace to the peace, security and order of the society. By doing so it is expected to ensure peace, security and order of the public, Therefore, the function of criminal law is to ensure peace, security and order of a given society so that peoples living in it can lead their life in orderly and predictable manner.

With a view to ensure peace, security and order of the society, criminal law aims at the prevention of crimes. It can prevent commission of crimes in two ways, one way is by giving due notice, to everyone, of crimes together with their corresponding punishment so that every one gets warned not to behave in a way contrary to the notice he has bee duly given. So, the criminal law shall clearly inform citizens and residents what constitutes a crime and the punishment attached to it.

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The other way by which criminal law can manage to prevent crimes is by punishing those who has committed a crime disregarding the due warning given to them. Punishment has to with the infliction of pain and it is a measure imposed by society on wrongdoers. Punishment is believed to have an effect of preventing the commission of crimes for various reasons. We will see those reasons when discuss purposes of punishment in Chapter four second Module.

1.3. General Overview on History, Development and Sources of Criminal Law

Admittedly, the history of crime goes back to the time when humankind started to live in a society. As some sociological studies indicate, crimes like murder, robbery, and adultery were prevalent in the ancient society.

Irrespective of its nature and kind, crime is dangerous to human beings living in a given society. It is not possible to lead a peaceful life unless there is a system by which the society can make itself free from crime. To this end a society need to have a criminal justice system of its own. This criminal justice system should have a law maker/legislative/, law interpreter/judicial/ and law enforcer/executive/.

Accordingly, the legislature enacts laws defining behaviors that are regarded as a crime together with their respective penalty. The judiciary will try those who are accused of for having committed a crime and it will either acquit or penalize them. The executive on its part will prevent the commission, investigate a crime that has already been committed, accuse those who are suspected for crime, and enforce penalty as pronounced by the court when the accused is found guilty and sentenced.

The above-described system is the one that has been implemented contemporarily and is the result of societal civilization. This system presupposes the existence of a society organized at state level. Of course, during ancient

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times, though there was no state, the society has managed to vindicate the rights of its people and keep intact its values.

During this time, since there were not an organized government, a victim of a criminal act used to retaliate the wrong doer by his own or together with his families and relatives. Later in time, when humankind was led by warlords, victims of crime used to bring their case to the former so that the wrong doer should be penalized and their right should be vindicated. Eventually, since human beings living in commune have managed to establish a state and have its own government, the primary responsibility to prevent, investigate crime, and bring to justice criminals is to be undertaken by the government.

Here it is worthy to note that the historical development of criminal law is indicative in answering questions like, what are those human behaviors that should be considered as crime and what are not? How could a certain society identify criminal acts from non-criminal one? What is the mechanism by which certain could be regarded as a crime?

Contemporarily every country has its own written criminal law which defines every crime with its corresponding penalty. And it is only those acts that are described as a crime by the criminal law that will entail criminal responsibility. Nevertheless, in some countries there was a practice by which acts were not written and considered

as a crime by lawmaker used to be regarded as such by courts. In common law countries, for example in the US, this was the case for a long time. Those acts regarded as a crime by courts are known as common law crime and those described as a crime by the law maker are named as statutory crime. However, this legal fashion is losing its acceptance and becoming outdated.

Obviously, in our modern times in which a criminal law is enacted in written form it is possible to identify what is criminal and what is not by mere reading

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of the law. However, during the ancient times in which writing was not reality and there was no state in charge of enacting laws, it is reasonable to think that what was and what was not crime could be determined based on the religious and cultural values/rules/ of a given society.

1.4 Historical Development and Sources of Ethiopian Criminal Law

In order to understand the current criminal justice system, it is commendable to have a bird eye view of the historical development of the Ethiopia Criminal Law. For simplicity sake let's classify this historical development into five periods.

- i. Pre-Fitha Negest
- ii. Fitha Negest/Law of Kings/
- iii. 1930 Penal Law
- iv. 1957 Penal Code
- v. 2005 Criminal Code

i. Pre-Fitha Negest

Despite the fact that Ethiopia had its own inscription and government for quite long centuries, there was no any written criminal law up until the coming of Fitha Negest. Before Fitha Negest, it was the religious, cultural and traditional rules of the society that used to serve as criminal law. It was the religious, cultural and traditional values of the society that would be considered to determine what was and what was not crime. These societal values had certainly made their contribution to the later development of Ethiopian Criminal Law.

ii. Fitha Negest /Law of the Kings/

It was during the reign of Emperor Zera Yacob, “a prince who loved justice so much that he condemned his own son to death for the murder of a slave”, Fitha Negest was translated into Ge'ez and given effect. Fitha Negest was meant to

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govern both spiritual and secular affairs. And it was the first written Ethiopian criminal law. After Zereyaekob, Fitha Negest was implemented by succeeding Ethiopian Kings for quite long period.

Until the 1930 Penal Law replaced it, Fitha Negest was well accepted and regarded by the Ethiopian Orthodox Church followers as a guiding rule for both secular and spiritual life. However, in Muslim society it was the Islamic law that was applicable. And the remaining population were governed by traditional and cultural rules. Although Fitha Negest had been considered as adequate and advanced for its time, later on it became clear that, owing to the introduction of western thinking into Ethiopia, there was a need to replace the Fitha Negest with new law which could accommodate new realities. Accordingly, a new Penal Law was enacted on October 2 of 1930.

iii. The 1930 Ethiopian Penal Code

Following the anointment of Emperor Haile Selassie I, the first endeavor to codify a criminal law became successful. It was this written law that had separated criminal law from religious and traditional laws made the former stand by its own. Even if the 1930 Penal Code based itself on Fitha Negest, it incorporated new developments on the principles of criminal law.

The first remarkable feature of the 1930 Penal Code was the fact that it had defined crimes and respective punishment in a precise manner. Secondly, though it did not entirely do away with corporal punishment and death penalty, it “softened and improved” penalty by totally abolishing mutilations. The third fascinating aspect of the 1930 Penal Code was its incorporation of the notion of individualization of guilt. Fourthly, it is worthy to note that this Penal Code had two parts, i.e., general and special part. The general part proclaimed criminal responsibility and assessment of penalty. The special part described different

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kinds of crimes and petty offence. Those crimes defined under the special part had to do with government, public, persons and property.

Before 1957 Penal law replaced it, the 1930 Penal Code was supplemented by subsequently enacted piece of proclamations. The 1942 proclamation abolishing slave trade, the 1944 Proclamation dealing with crimes that could be committed by members of the armed force, and the 1943 counterfeit currency can be cited as examples.

Despite the fact that the 1930 Penal, being the first codification, was a great step forward in modernizing the Ethiopian Criminal law, it suffered from a number of shortcomings. Among its shortcomings, the significant ones were primarily the fact that it, contrary to the principle of legality, proclaimed matters that were not considered punishable by the Penal Code could be punishable by the verdict of the Supreme Court. Secondly, its failure to incorporate; crimes that could be committed against international law, health, transport, administration of justice and the likes; special rules and penalties for juvenile offenders and recidivist; and principles of probation and suspension of penalty.

Owing to the above shortcomings, 1930 Penal Code was not able meet the demands of modern criminal justice system. As a result, it was necessary to replace this code by a new one, which could satisfy the requirements of modern criminal law. To this end, a new Penal law was enacted in 1957.

iv. The 1957 Penal Code

Professor Jean Graven, a Switzerland Scholar, drafted the 1957 Penal Code. A Codification Commission, composed foreign and Ethiopian Scholars, was established to cooperate with the drafter. In the process of drafting the 1957 Penal Code, it was argued that whether the former Penal Law should be revised or replaced by entirely new law. And eventually it was decided to promulgate

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an entirely new law since the way it would be revised of 1930 tantamount to enacting a new a law.

With a view to cop up with “the complexities of modern life”, “new concepts, not only juridical, but also those contributed by the sciences of sociology, psychology, and ... penology” were taken into account in the process of drafting the 1957 Penal Code. This Penal Code took Fitha Negest and 1930 Penal Code as a source in order to maintain Ethiopian legal tradition. At times, it has also taken into account foreign legal sources to the extent they were relevant and in conformity with the Ethiopian Legal tradition. Among the foreign legal sources that were utilized in drafting the 1957 Penal Code, Italian(1930), Swiss (1937), Greek(1950),and Yugoslav(1951) Penal Codes can be cited as examples.

Regarding the form and arrangement of the 1957 Penal Code, the Codification Commission agreed to do away with former tri-partite which classified crimes into felonies and misdemeanors and adopted a bi-partite classification of crimes. Accordingly, this Penal Code had two classifications, from Arts.1-689 and from Arts.690-820 dealing with serious crimes and petty offences respectively. These two categories had their own general, which set provisions applicable to all crimes and special part, which defined every specific crime.

Since the 1957 Penal Code into force, various subsidiary criminal legislations were enacted with view to supplement and amend it. Among these, the 1974 Special Penal Law worth mentioning. Following the fall of Emperor Haile Selassie regime, the succeeding military junta government promulgated a Revised Special Penal Law, which was intended to amend and supplement the 1957 Penal Code. The significant contribution made by this Revised Special Penal Code was the introduction of economic and commercial crimes and the increment of penalties regarding some of the crimes incorporated under the 1957 Penal Code.

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v. The FDRE Criminal Law

As the preface of the new Criminal Code clearly states, so many “radical” changes have been undergone in Ethiopia in political, economic and social spheres since the coming into force of the 1957 Penal Code. Those political, economic and social changes that have been taken place in Ethiopia demanded for a new criminal law that would accommodate the new realities. Thus, it has been found appropriate to replace the 1957 Penal Code by a new one.

Furthermore, the failure on the part of the 1957 Penal Code to properly deal with new brands of crimes that come into existence as result of technological advancement, like hijacking of aircraft, computer crimes and money laundering , has made the promulgation of a new criminal law necessary.

Similarly the fact that 1957 Penal Code did not address crimes related to corruption and drugs “with the degree of seriousness they deserve”, and overlooked to criminalize harmful traditional practices that certainly cause injuries and sufferings to children and women, have substantiated the need for enactment of a new criminal law that will address these concerns properly.

Besides, in order to gather various criminal provisions scattered in different piece of legislations, and to put an end to “parallel application of the regular Penal Code and the Revised Penal Code in respect of similar matters” the adoption of a new “comprehensive” criminal code has been found commendable.

In light of the above stated rational, a draft Criminal Code was prepared by the Ministry of Legal System Research Institute. This draft was strengthened by ideas and views forwarded during a number of discussion held with “legal and medical professionals, psychiatrists, different institutions of higher education and professional associations”, representatives from various sections of the

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people. In addition to this, the content of the new Criminal Code has been enriched by opinions of legal scholars, and laws and practices of foreign countries.

Having incorporated new brands of crimes and modern principles of criminal law which some how meet the Ethiopian Current reality, the FDRE Criminal has replaced the 1957 Penal Code on 9th of May 2005 as per Proclamation No.414/2004.

1.5 Purposes and Aims of Ethiopian criminal Law

The purpose and aim of FDRE criminal code is provided under Article 1 as follows.

The purpose of the criminal code of the Federal Democratic Republic of Ethiopia is to ensure order, peace and the security of the state its peoples habitats for the public good .

It aims at the prevention of crimes by giving due notice of the crimes and penalties prescribed by law and should this be ineffective by providing for the punishment of criminals in order to deter them from committing another crime and make them a lesson to others, or by providing for their reform and measures to prevent the commission of further crimes.

As per this provision, the purpose of Ethiopian criminal law is ensuring, in the interest of the public, order, peace and the security of the state of Ethiopian, Ethiopians, and residents of Ethiopia.

This purpose of the Ethiopia criminal law is to be served by prevention of crimes. If crimes are prevented; it is possible to maintain peace, order and

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security of the Ethiopian society. But how should the Ethiopian criminal law prevent the commission of crimes?

As the above cited provision clearly states, prevention of crimes can be done firstly by giving due warning of crimes and penalties prescribed by law. This is with the assumption that human beings are rational and they will not normally commit crimes if they are given due notice of acts which are defined by law as a crime and the punishment attached to them.

However, the above assumption may not always hold good. Individuals may commit crimes disregarding the due warning given to them by criminal law. In such cases criminal law prevents the commission of further crimes firstly by imposing punishment on those who have committed crimes. The punishment of criminals helps on preventing the commission of further crimes. This because the punishment of the criminal deter not only the criminal himself from committing another crime but also those who happen to witness the punishment of the criminal from committing crimes fearing that they will be subject to punishment if they happen to commit a crime.

Secondly criminal law prevents the commission further crime by taking measures which can reform the behavior of criminals enabling them to be law abider citizens. Or else it can take measures against criminals that leave them in a position they are not able to commit crimes.

1.6. Fundamental Principles of FDRE Criminal Code

It is the power of every state to enact and enforce a criminal law. However, this power is not to be unrestricted. There are limits on the power of state to legislate and enforce criminal law. Those limitations or restrictions are given constitutional recognition. That is why they are sometimes referred as constitutional limitations of criminal law. These constitutional limitations are

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considered to be fundamental principles that should be adhered to by those who are vested with the power to legislate, interpreter, and enforce criminal law

The FDRE criminal code has recognized the following as fundamental principles of criminal law. These are:

- Principle of legality
- Principle of equality before the law
- Principle prohibiting double jeopardy
- Principle of non-retro activity of criminal law

1.6.1. The principle of Legality

The principle of legality refers to the notion that there is no crime unless the law expressly provides it to be so. Accordingly no one will be held liable for a crime unless his act is considered as a crime by the laws in force at the place and time of the commission of the act.

The FDRE Criminal Code provides for principle of legality under Article 2 as follows.

- (1) Criminal law specifies the various crimes and the penalties and measures applicable to criminals.*
- (2) The court may not treat as a crime and punish any act or omission which is not prohibited by law.*
- (3) The court may not create crimes by analogy.*
- (4) The above provisions shall not prevent the court from interpreting the law. In cases of doubt the court shall interpret the law according to its spirit, in accordance with the meaning intended by the legislature so as to achieve the purpose it has in view.*

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As it can be understood from the reading of the above stated provisions, in view of ensuring the peace, order and security of a society, criminal law defines positive or negative behaviors which constitute a crime and prescribes punishment or measures for them. By doing so it warns people not to commit crimes which are punishable.

The principle of legality, therefore, with the view to protect the rights of individuals provides that no one shall be liable for commission or omission of an act which has not been made a crime by law. It is only those acts the commission or omission of which is prohibited by law at the pain of punishment that should be regarded as a crime. But by what law should it be prohibited? Certainly, it should be by the criminal law. However by criminal law we don't necessarily mean the FDRE Criminal Code for the latter is not the only Ethiopian criminal law. As it can be inferred from Article 3 of FDRE Criminal Code, it could mean any other law of a penal nature which is enacted by authorized government body provided that general principles embodied in the Code are applicable to them. Thus, the principle of legality, as it is provided under Article 2(2), states that courts may not hold a person criminally liable for commission or omission of an act which is not prohibited by law. Moreover, courts are not allowed, when a person convicted for a crime, to impose a punishment or order a measure which is not prescribed by law. They are duly bound to adhere to the provisions of the criminal law in force in convicting a person for a crime and imposing punishment on him.

Furthermore, courts are not allowed to create a new crime by analogy. That is to say courts may not punish a person doing acts, which are not prohibited by law but are similar to those which are defined by law as a crime. However, this doesn't mean that courts are not permitted to interpret criminal law. Admittedly courts do retain their inherent power to interpret the law in criminal law as well. This power is, however, to be exercised only in cases where doubt

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arises as to the true meaning of a given criminal provision. In such a case, courts are supposed to interpret a criminal law provision taking in to account the spirit of the law and the intention of the legislature.

1.6.2. the principle prohibiting double jeopardy

According to this principle a person shall not be tried and be punished for a crime for which he has already been tried and punished. This principle is enshrined in Article 23 of the FDRE Constitution and Art 2(5) of the FDRE CC has also reiterated this principle in the following manner.

No body shall be tried or punished again for the same crime for which he has been already convicted, punished or subjected to other measures or acquitted by a final decision in accordance with the law.

From the reading of this provision, one may come to realize that once a person is prosecuted, tried, convicted and punished or subjected to certain measures by a final decision a court of law, he may not be for the second time tried or punished for the same crime. The same holds true in cases where is acquitted by a final decision.

However, the principle prohibiting double jeopardy should not be taken to mean that only one punishment shall be imposed with respect to one crime. Actually more than one penalty may be prescribed for one crime, but that does not amount to doubt jeopardy as per Article 2(5). For example, a criminal may be subjected to imprisonment and payment of fine for committing a single crime.

1.6.3. The principle of equality before the law

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The right to equality before the law is one of the fundamental human rights under the international covenant on Civil and Political Rights and FDRE constitution. It is an inalienable right of every one to have equal treatment before the law. From this it follows that all laws shall be applied to every one equally. No one shall be preferred than others or discriminated against in the application of the law.

By the same token, a criminal law is to be applied to every one without discrimination of whatever kind. Any one who has committed a crime will be subject to provisions of the criminal law. In this regard Article 4 of FDRE Criminal Code has stated the following.

Criminal law applies to all alive with out discrimination as regards persons, social conditions, race, nation nationality, social origin, color, sex, language, religion, political or other opinion, property birth or other status. No difference in treatment of criminals may be made except as provided by this code, which are derived from immunities sanctioned by public international and constitutional law, or relate to the gravity of the crime or the degree of guilt, the age circumstances or special characteristics of the criminal, and the social danger which he represents.

This provision clearly stipulates that criminal law is to be applied equally to everyone with out discrimination based on the above described grounds. A person who has committed crime shall be held criminally liable for his criminal act. As a result he will be prosecuted and punished for his act irrespective his social conditions, race, nation, nationality, social origin, color, sex, language, religion, political or other opinion, property, birth or other status.

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However, the treatment of criminal is subject to certain exceptions as expressly provided by the FDRE Criminal Code. Let's see some of the exceptions.

Under the FDRE Constitution members of the Federal and Regional State Houses of Representative are immune from being arrested or prosecuted without the permission of the house for the crime they commit unless they are caught re-handed. However, this is not an absolute immunity rather procedural immunity. Thus, a member of parliament who has committed a non flagrant crime will be responsible for his act and punished for it where the house to which he belongs cancels his immunity.

The other exception is the case of diplomatic immunity. This immunity accord to certain individuals a protection from being tried for a crime they commit in a country in which they are not citizens. This sort of immunity is to be exercised based on the diplomatic agreements between two countries or public international law. Diplomatic immunity, however, does not relieve absolutely a criminal responsibility of those specified persons who are entitled to enjoy it. A foreigner with a diplomatic immunity, if he commits a crime in Ethiopia, though he enjoys his immunity from being tried in Ethiopian, he will be tried in his own country for the crime he commits in Ethiopia in accordance with his own country.

Furthermore, criminals may be treated differently depending on the gravity of the crime or the degree of their guilt. In assessing punishment, courts fix different punishments to persons who have committed aggravated crime and persons who have committed non-aggravated crime. Differential treatment can also be made taking in to account the age of a criminal. For instance, infants are exonerated from the provision of the criminal law. Besides, the punishment that will be imposed on adult criminals is not the same as the one that will be prescribed for juvenile offenders. Similarly, a differential treatment can be extended to person with special circumstances. For example, the way absolutely

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irresponsible person treated by the criminal law is quite different from the way responsible persons are to be treated.

1.6.4. The principle prohibiting retrospective effect of criminal law

Generally speaking, the principle of non-retroactivity has to do with the effective date a given law. As per this principle law is supposed to govern realities or facts that occurs after it has become enforceable or effective. In criminal law, it is well accepted principle that criminal law will be effective on those acts have been committed or omitted after the date it becomes enforceable. It will not retrospectively be applied on what happened before its effective date

The principle of non- retroactivity of criminal law is intended to protect persons from being punished for acts which were lawful at the time of commission but criminalized by subsequent legislation. Thus a person shall not be tried and punished for the commission or omission of an act which was lawful at the time it was done but which was made a crime by a latter criminal legislation.

Here it should also be noted that it will be contrary to the principle legality if a new criminal legislation is applied retroactively to acts that have been committed before it came to force. This is because punishing a person for an act which was not a crime at the time it was done is in effect holding a person criminally responsible for an act which is not prohibited by law which is in force at the time at the time the act is committed.

Regarding non-retroactivity of criminal law, Article 5 of the FDRE Criminal Code provides as follows.

(1) If an act, declared to be a crime both under repealed legislation and this Code was committed prior to the coming in

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to force of this code, it shall be tried in accordance with the repealed law.

(2) An act declared to be a crime under this code but not the repealed law and committed prior to the coming in to force of this code is not punishable.

(3) No act shall be tried or punished where it was a crime committed under the repealed legislation but is not declared so to be under this Code. If proceedings have been institute, they shall be discontinued,”

This provision tries to explain the principle of non-retroactivity in light of the repealed Penal Code and the newly enacted FDRE Criminal Code. Accordingly, if a certain act was a crime both in the repealed Penal Code and FDRE Criminal Code, the repealed Penal Code shall be applied where the crime was committed before the enforceable date of the FDRE Criminal Code.

Moreover, if an act was not a crime under the repealed Penal Code but is made a crime by the FDRE Criminal Code, it shall not be punished. Punishing such an act would be giving a retroactive effect to a criminal law. Because the act was lawful at the time it was done though later on it is made a crime by the FDRE Criminal Code.

However the principle of non-retroactivity of a criminal law is subject to an-exception. That is where the retrospective application of the law is favorable to the accused. This exception is stated impliedly under Article 5(3) and expressly under Art.6 of FDRE Criminal Code. According to the former provision, an act, which was a crime b under the repealed Penal Code but not in the FDRE Criminal Code, committed after the coming in to force of the latter, shall not be punished. Besides, if a criminal proceeding has already been instituted at the time the new Criminal Code, it shall be terminated.

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Moreover, Article 6 of the FDRE Criminal Code has clearly stated the exception to the principle of non-retroactivity of criminal law in the following manner.

Where the criminal is tried for an earlier crime after the coming in to force of this code, its provision shall apply if they are more favorable to him than those in force at the time of the commission of the crime.

The court shall decide in each case having regard to the relevant provision, the new law is in fact more favorable.

As it is the case under Article 22(1) of the FDRE Constitution, the stated provision thus provides that if an act declared to be crime both under the repealed Penal Code and the FDRE Criminal Code was committed prior to the coming into force of the latter, but the actor is being tried after its coming into force the new Code shall be applied provided that it is advantageous to the criminal. And whether which law is advantageous to the criminal shall be determined by courts.

SUMMARY

Human beings living in a given society may not pursue their life in orderly and predictable manner unless a system is put in place to deal with those people who behave in violation of certain standards of conduct which the society requires to be observed. Criminal law is one way by which society deals with those who refuse to play by the rules and seek their own ordinate interest by violating other interest. Criminal law is intended ensure the peace, order and security of the society by specifying those behaviors which are antisocial as a crime and prescribing punishment for them so that every one knows them and refrain from behaving in the same way. The criminal law has gone through different developmental stages since the time immemorial. In Ethiopia, the development of criminal law can be accounted in five periods. These are pre-Fitha Negest, Fitha Negest, the 1930 Penal Code, 1957 Penal Code and the FDRE Criminal

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Code. In a modern criminal law there are basic principles that should be followed those who are vested with the power to enact, interpret and enact law. These are principle of legality, prohibition of double jeopardy, equality before the law, and non-retroactivity of the law

Miscellaneous Exercises

1. Define crime and criminal law.
2. What are the basic features of criminal law?
3. Discuss the distinction between criminal law and civil law
4. Explain the functions of criminal law.
5. Discuss in brief the history and development of the Ethiopian criminal law.
6. Explain the purposes and aims of the FDRE Criminal Code.
7. What the fundamental principles of the FDRE criminal law? Discuss each of them briefly?
8. Analyze the distinction between the principle of legality and non-retroactivity of criminal law.
9. Do you think the principle of equality is subject to exceptions? why/ why not?
10. In what cases, should a criminal law applied retrospectively?

ELEMENTS OF CRIME AND CAUSE EFFECT RELATIONSHIP

Introductory Remarks

Every crime, irrespective of its type and seriousness, shares common ingredient elements. It is based on these ingredient elements that we can determine that an offence as described under the special part of the criminal law has been committed. The presence of these ingredient elements is also a decisive factor in determining the guilty of a wrongdoer. Furthermore, in certain kinds of crimes, in addition to the presence of ingredient elements, for a wrongdoer to be held criminally liable there shall be established a cause and effect relationship between his criminal act and resultant harm. Issues related to elements of crime and cause and effect relationship are discussed, explained, analyzed and reasoned out in this Chapter.

Objective

Having properly done with your reading of this Chapter, it is believed that you will be in a position:

- to list down and explain elements of crime
- to analyze legal element
- to describe what constitute material element
- to justify the importance of moral element
- to explain cause and effect relationship
- explain and analyze different approaches by which cause effect relationship can be established
- identify the distinction between sine qua non test and proximate cause test

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- illustrate the legal effects of preceding, intervening and concurrent causes

2.1 Elements of Crime

Article 23 of the FDRE Criminal Code, in defining what constitute a crime, has stipulated basic ingredient elements of a crime in the following manner.

A crime is only completed when its legal, material and moral ingredients are present.

As it can be understood from the reading of this provision, for a crime to have been said committed the cumulative presence of the legal, material and moral element is necessarily required. In the forth coming sub-sections we will discuss each of the ingredient elements together with relevant examples.

2.1.1 Legal element

In our discussion on fundamental principle of criminal law, we have considered the principle of legality. As per this principle, an act may not constitute a crime unless there is law prohibiting an act and making it punishable at the time of its commission. The law should clearly describe the act constituting the crime and prescribe the corresponding penalty. It is only when there is such a law that we can say that a criminal law has been violated and an offence has been committed as a result. This law could be FDRE Criminal Code or any other proclamation or regulation having a penal provision.

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Dear student, do you think that it is rational to consider “law” as ingredient element of a crime? Regarding this issue, some people tend to argue, “the law is an instrument of prevention and repression and not an ingredient of offences”. Do you agree with this assertion?

2.1.2 Material Element

The other ingredient of a crime, as it is pointed out under Article 23 (2), is material element. Needless to mention, a mere thought of committing a crime does not suffice to constitute a crime and may not entail punishment. There will not be, for that matter, a violation of a criminal law unless there is a material breach of such a law. In order for a crime to have been said committed, there shall be a material breach of a criminal law. It is not the purpose of the law to punish mere thoughts of committing a crime, thus the thought should be externally manifested by certain material act. For example, a person who thinks to steal another person’s property will not be liable for crime of theft unless he behaves in way to materialize his thought.

Thus, what is material element? Material element of a crime refers to an act, to use the language of Article 23 (1), “which is prohibited and made punishable by law”. However, so far there is no an agreed definition for the term “act”. Nevertheless, for the purpose of the Criminal Code of Ethiopia an act is described, under Art.23(1), second alina, as “the commission of what is prohibited or the omission of what is prescribed by law”. Thus, a person can commit a certain criminal act by doing what is prohibited by, or by refraining from doing what is prescribed by the criminal law.

Accordingly, it is possible to classify crimes into crimes of commission and crimes of omission. Crimes of commission refer to those crimes the commission of which requires the performance of what is prohibited by criminal law. For example, crimes of bodily injury, arson, theft etc requires striking

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some one's body, setting fire on some one's house, abstracting some body's property respectively.

Whereas, crimes of omission implies failure to perform what is prescribed by criminal law. A number of these kinds of crimes are stipulated in FDRE Criminal Code. For instance:

Art.443(1) Failure to Report a Crime

Whoever, without good cause:

a/ knowing the commission of , or the identity of the perpetrator of, a crime punishable with death or rigorous imprisonment for life, fails to report such things to the competent authorities; or
b/ is by law or by the rules of his profession, obliged to notify the competent authorities in the interests of public security or public order, of certain crimes or certain grave facts, does not do so, is punishable with fine not exceeding one thousand Birr or simple imprisonment not exceeding six months.

Art.575 Failure to Lend Aid to Another

- 1. Whoever intentionally leaves without help a person in imminent and grave peril of his life, person or health, when he could have lent him assistance without, direct or indirect, without risk to himself or third parties, is punishable with simple imprisonment not exceeding six months, or fine.*
- 2. Simple imprisonment shall be from one month to two years where;*
 - a) the victim has been injured by the criminal himself , on matter in what circumstances or by whatever means; or*

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b) the criminal was under an obligation professional or contractual, medical, maritime or other, to go to the victim's aid or to lend him assistance.

From the reading of the above legal provisions we can understand that failure to perform what is commanded by criminal law is a crime punishable by law. Similarly, failures to give warning of grave public danger and to register the birth of an infant are also crimes omission as per Arts.503 and 656 of the FDRE Criminal Code.

In some cases, a person's failure to do so what is commanded by law under the pain of penalty may bring about the same result which could naturally be brought by doing what is prohibited by criminal law. For example Mr. X can bring the death of Mr. Y, which could be caused by shooting Mr. Y, by failing to extend assistance to the latter while the latter was in great peril and the former could have assisted him with out direct or indirect risk to himself or third party. Such kinds of crimes are sometimes referred as crimes of commission by omission.

From what has been discussed so far it is possible to conclude that under the FDRE Criminal Code material element refers to an act of commission or omission what is prohibited by law and prescribed by law respectively. However, there are cases that do not squarely fit with this conclusion; for instance, crimes of dangerous vagrancy and unjustified possession of suspicious articles which are crimes under the FDRE Criminal Code. In both cases, there is no requirement of commission or omission of an act prohibited or prescribed by law respectively.

Article 477, Dangerous Vagrancy

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Whoever, having no fixed abode or occupation and no regular or visible means of support, and being able-bodied, habitually and of set purpose leads a life of vagrancy or disorderly behavior, or lives by his wits thereby constituting a threat to public security is punishable with compulsory labor with restriction of personal liberty(Art.104), or with simple imprisonment not exceeding six months.

Art.854. Unjustified Possession of Suspicious Articles

Whoever is found in possession of keys, hooks, pincers, instruments or weapons, or securities, articles or objects the origin of which he cannot explain satisfactorily or the use of which he cannot justify, is punishable with fine not exceeding one hundred Birr or arrest not exceeding fifteen days.

In both these two legal provisions, it is not the commission or omission of a certain act rather it is the social status of the person, in case of dangerous vagrancy, and possession of certain articles, in the case of unjustified possession of suspicious, that constitute the crime. Here the issue is whether material element is still considered as an ingredient of these two crimes. If it is so, shall we construe material element to include also social status and possession certain articles, which are not actually commission or omission of an act? Or shall we take it for granted that crimes dangerous vagrancy and unjustified possession of suspicious articles are exception to the requirement of material element? Dear student you are encouraged to discuss these issues with your friends and colleagues?

The other point that should be considered in relation to material element is the personal nature of criminal liability. It is a well accepted norm that no one shall be held criminally liable for a criminal act committed by another person. There is no vicarious liability (liability for others) in criminal law. A person will be

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criminally liable only for acts the commission or omission of which is attributable to him. As a matter of principle the commission or omission of a criminal act is attributable to natural persons. Nevertheless, in some cases a criminal act may be attributed to juridical persons entailing a criminal liability in accord with Article 23 (3) of the FDRE Criminal Code.

2.1.3 Mental Element

The mere fact of violating a criminal law, the presence of legal and material ingredients of crime, does not suffice to entail a criminal liability. The violation shall be accompanied with guilt state of mind. This brings us to the third ingredient of a punishable crime, i.e., moral element. Moral ingredient refers to the state of mind of the wrongdoer at the time of committing the crime. True it is, not every contravention of a criminal law is punishable. In terms of Article 23 (4) of the FDRE Criminal Code, a crime entails punishment “where the court has found the crime proved and deserving punishment”. Thus, when does a crime deserve punishment?

From the a *contrario* reading of Article 57(1), first alina, it is possible to construe that a person can be punished for a crime if and only if he is found to guilty. From this it follows that a crime deserves punishment, safe for excusable and justifiable grounds, when it has been proven that its perpetrator has acted with guilt sate of mind.

If that is so, what is a guilty state of mind? As per Article 57 (1) of the Ethiopian Criminal Code, second aliena, a person shall be deemed to have a guilty state of mind if he is proven to have committed the crime either intentionally or negligently. Of course, as a matter of principle, it is intentionally committed crimes that are punishable. Nevertheless, exceptionally

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negligently committed crimes as well may entail punishment when this is so expressly provided by the law.

2.2 Cause Effect Relationship between a Criminal Act and Resultant Harm

Dear distance student, it is hoped that you have properly understood the discussion that we have had in the preceding chapter regarding elements of crime. The legal, material and moral element shall concurrently present for a crime to have been said committed. The complete commission of a crime, however, depends on other additional factor.

Depending on the type of crime, the commission of a complete crime may or may not require the achievement of a certain result. In some crimes in order for a complete crime to have been said committed the criminal act of the perpetrator must bring about a resultant harm as described by the law. For example, the act of the perpetrator shall cause the death of the victim for former to have been said committed a complete crime of homicide. In other crimes, however, the mere fact committing a criminal act by itself suffice for complete commission of the crime. For instance, a crime of forgery is completely committed whether or not the perpetrator has made use of the forged material. Thus, depending on whether or not their complete commission requires the achievement of a certain result, it is possible to classify crimes into crimes of conduct and crimes of result,

Concerning crimes of result, a person may not be deemed to have committed complete crime either by commission or omission unless the resultant harm is the effect of his criminal act. In this regard, Article 24 (1), first alina, of the FDRE Criminal Code has provided the following.

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In all cases where the commission of a crime requires the achievement of a given result, the crime shall not be deemed to have been committed unless the result achieved is the consequence of the act or omission with which the accused person is charged.

As far as crimes of result are concerned, this provision has clearly pointed out the requirement of establishing cause effect relationship between an act of commission or omission of the perpetrator and a resultant harm expected to be caused in order for a complete crime to have been deemed committed.

A criminal actor may not be held criminally liable for the commission of a complete crime unless the act that he is accused of has brought about the result that is described by the law. For instance a person may not be held liable for committing homicide for mere fact of shooting at another person unless his shot has caused the death of the latter. If his shot has not brought the death of his victim or the death has been brought by an extraneous cause, he may not be liable for homicide.

However, that does not mean that the actor will absolutely be relieved from any criminal liability. Definitely, he will be liable for the criminal act that he has committed, i.e. shooting another person. Depending on the manner and seriousness of the shooting, he may be liable for attempted homicide or grave bodily injury.

Hence, in determining the criminal liability of a person who has been accused of a crime the commission of which requires the achievement of a certain result the cause and effect relationship shall be established. Here comes the issue how can we ascertain whether there exist a cause and effect relationship between a criminal act of a wrongdoer and a resultant harm.

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In majority of cases establishing a cause and effect relationship may be found to be simple and straightforward. However, in some cases it is very difficult and complicated to ascertain the cause effect relationship between a given act and a given result. Actually, there are various approaches by which cause and effect relationship can be established. Among these approaches the most common one are the absolute cause test and adequate or proximate cause test. Let us see these approaches for each own.

i. Absolute Cause / *Sine qua none*/ Test

This test was being used in some countries for quite long time to establish cause and effect relationship. According to this test, a certain act is a cause of a certain result if in the absence of such act the said result would not have been occurred. For example, Mr. X punches Mr. Y on his nose inflicting a bodily injury to the latter. While Mr. Y is being driven to hospital, the car collides with another car and he dies immediately. As per the *sine qua non* test, Mr. X will be criminally held liable for the death of Mr. Y. Because had Mr. Y not been injured by Mr. X strike, Mr. Y would not have been driven to hospital and would not have not lost his life in a car crash.

However, in order to consider a human act as being the legal cause of a given result suffices not that one is able to say: with out this act, the result would not have occurred. This theory of absolute cause erroneously extends the scope of criminal responsibility and assimilates cause with occasion of the harm. Instead of restricting the criminal liability to the one who real caused the harm, it goes too far and extends the liability to the one whose act is a necessary condition for the result achieved. As a result, it failed to make a distinction between cause, an event or a fact that produce something, and condition, an event or a fact that allows another event to be produced.

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Nevertheless, it can be denied that this doctrine of causality is of some help in screening out possible suspects who shall be held criminally liable. Since it only considers those persons whose acts are a necessary condition for the harm eventuated, it in effect excludes others whose acts have no bearing on the result that has been brought.

i. Theory of Proximate or Adequate Cause

In view of its shortcomings, it would be very irrational to determine the criminal liability of a person on based on the doctrine of absolute cause. In the illustration given above, it is very clear that the cause of the death of Mr. Y is not the punch he received from Mr. X, rather the car accident. This is supported by the theory of adequate or proximate cause. According to this doctrine, a given act shall be considered as the cause of a given result if, only if , the act committed is, in the normal course of things, capable of bringing the said act. From this it follows that the perpetrator's act must be, not only necessary, but also a relevant condition of the harm eventuated. Thus, circumstances, though may have contributed to the occurrence of the result, are not in the ordinary or normal course of things capable of achieving the said result may not be considered as the cause, in the legal sense of the term, for the harm.

In applying the doctrine of proximate or adequate cause regard shall be had to the normal or ordinary course of things. Accordingly, in as far as crimes of omission are concerned, "if an act is done which followed by a certain result and experience shows that, whenever this act is done, this result follows, if not invariably, at least in majority of cases, then this act will be held to be relevant and a relationship of cause and effect shall be presumed to exist between the said act and result". Similarly, in respect of crimes of commission by omission, if the omission of a certain act is followed by a certain result, the omission shall be considered as the cause of the said result if experience dictates that the commission of the act would prevent the occurrence such result.

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Having in mind the two approaches that we have considered hereinabove, let us see how the FDRE Criminal Code has treated the establishment of cause and effect relationship. The FDRE Criminal Code under Art.24 (1), second alina, has provided the test by which the presence of cause and effect relationship between a criminal act and a resultant harm shall be determined.

*The relationship of cause and effect shall be presumed to exist when the act within the provision of the law would , **in the normal course of things**, produce the result charged. (emphasis added)*

The cursory reading of this provision indicates that Ethiopian Criminal Law, as standard for establishing cause and effect, adopts the proximate or adequate cause doctrine. Specifically, the phrase “in the normal course of things” affirms this assertion. Accordingly, a given criminal act shall be considered as the cause of a given result if the said act as described by the law would, in the normal course of things, bring about the said result. That is to say, if experience shows that a certain result normally follows whenever a certain act is committed, the relation of cause and effect shall be presumed to exist between the said act and result.

The relation between cause an effect can easily, though not always, be established by using the adequate or proximate cause test. For example, if Mr. X shots at Mr. Y on his head and the latter dies, Mr. X will be criminally held liable for the death of Mr. Y. This is because, according to the doctrine of adequate or proximate cause, the act of shooting on some one’s head will, in the normal course of things, bring about the victims death. Thus, it is obvious to conclude that Mr. X’s shot is the cause for the death of Mr. Y.

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Some times, however, it may be found very difficult to establish cause effect relationship between a criminal act and a resultant harm. Specially, the difficulties arise when there are preceding, concurrent or intervening causes which are capable of bringing about the resultant harm.

The FDRE Criminal Code has dealt with the legal effect of preceding, concurrent and intervening causes under Art.24 (2) and (3) in the following manner.

2).Where there are preceding , concurrent or intervening causes , whether due to the act of a third party or to a natural or fortuitous event, which are extraneous to the act of the accused, this relationship of cause and effect shall cease to exist when the extraneous cause in itself produced the result.

3) Relationship of cause and effect shall be presumed to exist between each cause specified under sub-article(2) above and the result achieved , when the result is the cumulative effect of these causes, even though each cause cannot independently produce the result.

When there are multitudes of extraneous causes which precede, concur or intervene the criminal act of the accused, there shall not be cause and effect relationship between the act of the accused and the result achieved if the preceding, concurrent or intervening cause in itself has brought about the result. Let us see each case by illustrating with hypothetical examples.

In the context of Article 24 (2), preceding cause refers to any cause, whether attributable to a third party or to natural or fortuitous event that occur prior to and extraneous to the act of the accused. For example, while Mr. Z is fatally wounded on his head by bullet fired by Mr. K, Mr. J came and stabs his shoulder with a knife. If he dies then after, who will be responsible for his

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death? According to Article 24(2) of FDRE Criminal Code, since the preceding cause, the shot by Mr. K, in itself is adequate enough to bring about the death of Mr. Z, there shall not be a chain of causation between the death of Mr. Z and the act of Mr. J. Thus, Mr. K shall be liable for the death of Mr. Z. Let us figure out another situation. Mr. G shot Mr. N on his leg and after a while, Mr. P shot Mr. N on his arm. Subsequently Mr. N died. So, who would be responsible for the death of Mr. N? If it is scientifically proven that the death of Mr. N is the cumulative effect of the two shots, both Mr. G and P will be liable for the death of the victim irrespective of the fact the former precedes the latter in hitting him with bullet.

In relation to concurrent cause, the law has provided that relation of cause and effect that could have existed between the resultant harm and the criminal act of the accused may not exist if an act that occurred at the same time with but extraneous to the act of the accused has in itself achieved the said such result. For example, if X and Y simultaneously shoot M with the intention of killing him and M is hit by both bullets and dies. In this case, in order to determine whether X or Y is liable for the death, we have to investigate which bullet is efficient to bring the death of M. Accordingly, if it is proven that both bullets were fatal, then X and Y will equally be held criminally liable for the death of M. However, if the bullet fired by X hit M in the leg, whilst the bullet fired by Y hit M in the heart, irrespective of the fact that both bullets hit the victim simultaneously, Y will be responsible for the death of M since his act will be regarded as the efficient cause of M's death.

In determining the liability the court is not required to consider everything that might possibly have occurred if M had only been shot in the leg by X and not also in the heart by Y. Of course, it is possible to think that the wound in the leg in the absence of proper treatment might result in M's death. But this is irrelevant in the circumstances since the act of X would not bring about the death of M in the normal course of things. The same conclusion can be reached

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in cases where the concurrent cause is attributable to natural or fortuitous events. For instance, a bullet fired P and lighting stroke simultaneously hit R and the latter dies. Assuming, it is proved that the lighting has caused the death of R, P will liable for the death of R. Nonetheless, he may be criminally held liable for attempted homicide.

Coming to intervening cause, it has been stated under Article 24 (2) that the chain of causation that could have existed between the act of the accused and the resultant harm shall be broken when an extraneous cause, be it an act of third party or natural or fortuitous event, that occurred subsequent to the act of the accused in itself brings about the result the could have been achieved by the act of accused. For example, X strikes Y with stick and as a result the latter is admitted to hospital. While he is there, a fire breaks out in the hospital and he dies. Here it is clear that the efficient cause for the death of Y is not the X's strike rather it is the fire. The fire is the intervening cause that terminates the chain of causation that could have existed between X's act and Y's death since it in the normal course of things can bring about the same result.

In dealing with cause and effect relationship, there are two important points that should not be left without being noted. One is the fact that the cause effect relationship that could have existed between the a given criminal act and the resultant harm by preceding, concurrent or intervening cause does not relieve the actor from criminal liability. Though he may not be liable for complete commission of a crime under consideration, he will be liable for at attempting the same or for a different complete crime. For example X strikes Y with stone and a lights stroke hits Y instantly after X's strike and Y dies as a result. Assuming that it is proven the cause for Y's death the lighting stroke, X may not be criminally liable for the death of Y and convicted for completed crime of homicide. However, depending on the manner how X strikes Y with stone, the former will be liable either for attempted homicide or for a completed crime of serious bodily injury.

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The other point is the fact that a given act has caused certain harm does not as of right entail punishment to the actor. Some times it may happen that the actor, neither knew, could or should have known of, nor intended the harm or the harm caused goes beyond what is intended by the actor. In such cases, the actor will only be liable for the harm he desired, or knew, could or should have known to occur as a consequence of his act. In other words, the moral element as described under Article 58/1/ and 59/3/ for a person to be punished for the harm his criminal act ensued. For instance X, with intent to cause a bodily harm, strikes Y a stick on his shoulder and the latter dies as a result. Here, the harm caused by X goes beyond what he has intended, knew, should or could have known. Thus since X lacked the moral element to commit homicide, he will not be liable for the death of Y even if his act has caused the latter's death. However, he will be liable for serious bodily injury that he has caused to Y.

Summary

In order for a punishable crime to have been said committed the three ingredients of a crime, i.e. the legal, material and moral element shall be present at concurrently. In other words, the presence of these three elements of crime at the same time is a decisive factor in order to ascertain whether a crime has been committed. The concurrence of these three ingredients is considered as a fourth ingredient of a crime in some jurisdiction. Therefore, if one the ingredient is missing, despite the fact that the other two are present, a crime may not be deemed to have been committed and may not thereby entail a criminal liability. In addition to the fulfillment of these requirements, for a complete crime to have been said committed the achievement of certain result may be required. Depending on whether the achievement of a certain result is required for complete commission of a crime or not, crimes can be classified as crimes of result and crimes of conduct. In cases of crimes of result a person may not be liable for his criminal act unless there is a cause and effect relationship between his act and the resultant harm. The cause and effect relationship can be

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established by using the different methods including the sine qua non test and proximate cause test. The FDRE Criminal Code has adopted the proximate cause test in order to determine the existence of cause effect relationship. However, the cause and effect relationship that could have been established between a given act and result ceases to exist where there are preceding, concurrent or intervening causes, which are extraneous to the actor, in themselves brought about the said result.

Miscellaneous Exercises

1. What are the three elements of a crime under FDRE Criminal Code? Analyze them in light of Article 23.
2. Discuss material element by providing hypothetical examples.
3. Do you think law shall be taken as an element of a crime? Why or why not?
4. What is material act under FDRE Criminal Code?
5. Discuss the distinction among crimes of commission, crimes of omission and crimes of commission by omission.
6. Explain the distinction between crimes of conduct and crimes of result.
7. Analyze the two common approaches for establishing cause and effect relationship.
8. Which approach do you think is incorporated under FDER Criminal Code?
9. Discuss the effect of preceding, concurrent and intervening causes in establishing cause effect relationship.
10. Do you think that the fact that the criminal act of the person is interrupted by preceding, concurrent or intervening causes will entirely relieve him from criminal liability? why or why not?
11. Do you think that a person will be punished as of right for the harm caused by his act? Why or why not?

Hypothetical Cases

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Please your well reasoned ruling in light of the FDRE Criminal Code on the following hypothetical cases

a/ Kebede armed with a shotgun and cartridges, shot at police who were attempting to arrest him. He held a 16-year-old girl who was pregnant by him as a shield. The officers returned fire and the girl was killed. Do think Kebede will be liable for homicide?

b/ X shot his brother-in-law, inflicting a wound which would have proved fatal within a relatively short period. However, the victim shortly thereafter cut his own throat, thus further hastening his death. Do think X shall be liable for the death of the deceased?

C. Y put cyanide into X coffee cup, but the latter died of heart failure before the poison could kill her. Do you think Y will be liable for killing X? why or why not?

D. Chalachew stabbed with a knife an 18-year-old woman, Beletu and punctured her lung. At the hospital, Beletu was told she would need a blood transfusion to save her life, but refused this as contrary to her religious beliefs. She died next day. What would be your ruling regarding Chalachew's act?

DEGREES IN THE COMMISSION OF CRIME

Introductory Remarks

As you could remember from our preceding discussion on the ingredients of crime, we have seen that a crime shall be deemed to have been committed only when all the legal, material and moral elements are present. To commit a crime completely, a person need to carry out his unlawful activities to its end. In carrying out his criminal activities to its end, there are different stages in his crime path an offender passes through. These stages are commonly referred as degrees in the commission of a crime.

The crime path that the wrongdoer is supposed to pass in order to accomplish his criminal design may not be always, short. It may be long enough requiring him to take certain steps and undertake certain activities at different stages before actually committing the crime. In such cases how should we determine at what stage does a wrongdoer really begin committing the crime? How should we determine whether a crime is attempted or not? In other words, how should we demark the border line between what is and what is not a crime? The forthcoming discussion the degrees/stages/ on the commission of the crime will be of a great help in solving these and similar issues.

Objective

Having gone through the discussion presented in this chapter, you will be able to:-

- explain the nature and legal effects of preparatory acts
- analyze and explain criminal attempt and its classifications
- distinguish preparatory acts from criminal attempt

3.1 Preparatory Acts

Article 26 of the FDRE Criminal Code provides that:

Acts which are committed to prepare or make possible a crime, particularly by procuring the means or creating the conditions for its commission are not usually punishable, however, such acts are punishable where: in themselves they constitute a crime defined by law or they expressly constitute a special crime by law owing to their

In the course of carrying out a certain criminal design, the actor may pass through different stages in his crime path. As far as intentional crimes are concerned, an offender embarks upon two stages, i.e. internal or mental and external stages, before he starts the execution of the crime. The internal stage refers to a mental process which begins with thought of committing a crime and ends with decision to commit the crime. This stage is not manifested by any material act.

The external phase comes in to picture after the actor has decided to commit the crime he thought of and when he/she does preparatory acts which are necessary to make the commission of the crime possible.

This section is dedicated to deal with preparatory acts. Therefore, your reading of this section will enable you to:

- To identify acts which shall be considered as preparation
- To reason out why preparatory acts are not punishable as a matter of principle
- List down those exceptional circumstances which make preparatory acts punishable .

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As it is pointed out earlier on, the commission of intentional crime is preceded by internal phase (mental process) in which the actor thinks committing a crime and decides to commit it accordingly. This phase of a criminal design does not entail a criminal liability and is not punishable since the thought is not manifested by any positive or negative behavior. A person may not be held criminally liable for thinking contrary to what has been provided by criminal law unless his thought are manifested by a material act which violates the law. Of course, it is not the purpose of criminal law to penalize a mere thought of committing a crime since “the thought of man is not triable, for the devil himself knows not the thought of man”

The external phase comes when the actor, after having decided to commit the crime takes some material steps which pave the way for the commission of the crime. At this stage preparatory acts are done with a view to commit the crime successfully and, if possible, with impunity. The actor having decided to commit certain crime, he/she will naturally consider the means by which, the place in which and the time at which he/she should commit the crime. Assuming, the actor has decided to kill his friend by administering poison he has gone to shop and bought poison. Similarly, assume that the actor has decided to kill his friend while the latter is alone and has studied the place in which and the time at which he can find the latter alone. These acts considered in light of the purpose for which are done can be regarded as preparatory acts.

The FDER Criminal Code under Article 26 described preparatory acts as “acts which are committed to prepare or make possible a crime, particularly by procuring means or creating the conditions for its commission”. Thus, if the actor, for carrying out his criminal design collect materials necessary for the execution of the crime or arranges a favorable condition for the commission of the crime, he shall be deemed to have done preparatory acts. For instance, Mr. X procure a gun, a poison, a knife, etc with the view to use it to kill another person, his act shall be regarded as preparatory act. Similarly, if Mr. Y, with

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internet to rob the house of Mr. X, goes to near to the latter's house and checks out whether there is someone around, his conduct shall also be regarded as a preparatory act.

Regarding their legal effect, as a matter of principle preparatory acts are not punishable. There are two basic reasons for adhering to this principle. Firstly, preparatory acts are equivocal. Let, assume that Mr. X buys a poison. The act of buying a poison considered by its own doesn't unequivocally indicate that Mr. X has an intention to kill another person. This is because the act of buying a poison has several purposes; it could be to kill mice that are messing up his house; it could be to kill insects; or it could also be to kill another person. So it is very hard to tell with a reasonable degree of certainty for what purpose Mr. X has bought the poison. Thus preparatory acts considered by their own are too equivocal to tell the intention of the actor. Therefore, a person may not be punished for having done preparatory acts. Doing so would amount to punishing a person for not his criminal intention rather his "assumed intention"

Secondly, preparatory acts are not always punishable since they are remote to the actual commission of the crime .Admittedly; the buying of a poison implicates the dangerousness of the actor if the latter has made his intention clear, for example, by utterly threatening that he is going to kill another person. However, this may not constitute a punishable crime since it is very hard to believe with a reasonable degree of certainty that he will actually commit the crime in a cord with his preparation. This is because there is a remote distance between the stage of preparation and actual commission of the crime. There is along distance to go between, in above illustration, the act of buying a poison and actually administering the poison with intent to kill another person. Thus, it is possible for the actor to change his mind and decline from pursuing his criminal design. Therefore, it would be unjust to punish an actor for having done preparatory acts, though his clear intention is pretty clear.

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In view of the above justification, the FDRE criminal law has made preparatory acts punishable only exceptionally as provided under Art. 26 (a) and (b). In all other cases preparatory acts are not punishable. So, what are these exceptions in which case preparatory acts are punishable?

The FDRE Criminal Code has provided under Articles 26(a) and (b) the two exceptions in which case preparatory acts are punishable. As per Article 26(a), preparatory acts are punishable where the acts by themselves constitute a punishable crime as described by the Criminal Code. Here, the actor is to be punished not for making preparation to commit a crime rather for the acts he has done to make the commission of another crime possible are by themselves crimes as defined by the criminal law. Thus, the actor will be held criminal liable for crime he has completely committed. For instance if a person, with intent to kill another person, buys and carries a gun without having a permission from a concerned authority, he will be criminal held liable not for the preparation that he has made to kill another person. Rather, he will be punished for committing a crime in violation of Article 809 of the FDRE Criminal Code which prohibits acquiring an arm without authorization. As it can be understood from the above illustration, the preparatory act, the buying of the gun, by itself constitute a crime as defined by Article 809 of the Criminal Code. Thus, the actor will be held criminally liable for the crime that is successfully committed. Arguably, therefore, it is possible to conclude that cases which fall under Article 26(a) of the Criminal Code are not *strict senso*, exceptions to the principle that preparatory acts are not punishable.

The other exception to the principle that preparatory acts are not punishable is the one that is provided under Art.26 (2). Even if preparatory acts are not punishable, owing to their equivocalness and remoteness, there is a pressing need to penalize preparatory acts in cases where the actual commission of the crime is of higher gravity and may entail grave and irreversible danger. The law

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maker, taking in to account the gravity and the general damager they may entail, has made certain kinds of preparatory acts to constitute a special crime.

Accordingly, the FDRE Criminal Code has expressly provided under Article 257 that preparatory acts which are done to make possible the commission of crimes against the constitution/Art.235 -242/and crimes against the external security and defense force of the state /Arts.246-252/ shall constitute a punishable crime by their own. For example, preparatory acts for the commission of armed rising or civil war as defined under Article 240 is punishable in accordance with Article 257 of the FDRE Criminal Code, even the crime has not been attempted.

In relation to cases where mere preparation is punishable there is an issue that should be looked into. The issue is whether a person who has attempted a crime the mere preparation of which is punishable shall be liable for both the attempt and preparation. For instance Mr. X and Y together with other people have done preparatory acts to commit the crime of civil war /Article 240/ and accordingly they have attempted to raise civil war but they failed. Shall Mr. X and Y be liable for preparing to raise civil war as per (Article257 & 240 and for attempting to raise civil war as per Article 27(1) & 240(1)(b) of the FDRE Criminal Code? Philippe Graven has addressed issue in the following manner.

Since the provisions punishing preparation have preventive purpose, it would seem that they should apply only as subsidiary. They should be restricted to the cases where there is a danger of harm and should not apply when the harm they aim at preventing has occurred and the person who caused such harm is punishable under a different and more specific provision, as it is generally agreed that, when a danger of harm materializes, the deed may not be punished both for the danger created to certain interests and for the harm actually done to same interest'.

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In light of his reasoning, therefore, Mr. X and Y shall liable war not for the preparation but for attempting to raise civil war.

3.2 Attempt

Attempt refers a stage in the criminal path of the actor which goes beyond preparation. It actually implies a beginning of execution of the criminal design of the perpetrator. From this it follows that the stage of preparation ends and attempt comes when a person starts the execution of the crime. This section is dedicated to deal with issues like;

- how should we draw the line between preparatory acts and attempt?
- what are the different approaches that might be used o determine whether a commission of a crime has been attempted or not?
- what makes complete attempt different from incomplete one ?
- what is the legal effect of renunciation and active repentance?

Objective

After you have successful studied the analysis, explanation and illustration that have been provided in this section, you will be able to:

- Define and illustrate criminal attempt
- Make distinction between preparatory acts and attempt
- Justify why attempts are punishable as a matter of principle
- Classify attempts in to complete and incomplete attempt
- Explain, illustrate, and compare and contrast renunciations, active repentance and crime impossible of completion.

To make your reading some how at ease, please have a look at Article 27 of the FDRE Criminal Code before embarking on your reading of this section. So, here you have.

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Article 27- Attempt

(1) whoever intentionally begins to commit a crime and does not pursue or is unable to pursue his criminal activity to its end, or who pursues his criminal activity to its end without achieving the result necessary for the completion of the crime shall be guilty of an attempt. The crime is deemed to begin when the act performed clearly aims, by way of direct consequence, at its commission,

(2) An attempted crime is always punishable save as is otherwise provided by law. A mere attempt to instigate or assist in a crime does not come within the provision of the law unless it is expressly provided to the contrary

(3) Without prejudice to the provisions of Article 117, in the case of an attempted crime the criminal is liable to the punishment attaching to the crime he intended to commit: Provided that circumstances so justify the court may reduce the punishment within the limit provided by law (Art.179).

3.21 What is a criminal attempt?

The stage in the crime path of a wrongdoer which comes immediately next to preparation is attempt. Attempt is basically different from preparatory act for it is unequivocal and proximate. There is no doubt as to the intention of the attempter and the acts of the attempter are proximate to the intended harm. Attempt, generally speaking, refers to any act which goes beyond the realm of preparatory act but which fails to achieve the intended result. Therefore, attempt implies failure on the part of the actor to accomplish his criminal design though he has intentionally begun the commission of the crime.

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Unlike preparatory acts, criminal attempt is punishable as matter of principle. Do you think this should be so? Of course, the reason for punishing any act must generally be to prevent some harm from occurrence. And it is clear that attempt signifies that the wrongdoer does not succeed in causing the intended harm. So, why should the law punish an attempt to commit a crime?

Certainly, the justification for punishing attempt is not prevention of harm rather prevention the danger involved in the act. It should be noted that a person who attempts to commit a crime will be punished not for the harm he causes but for the dangerous criminal behavior he has shown. For this reason attempt entails a criminal liability when a person intentionally begun to commit a crime but failed to achieve the intended result. From this it follows that for a criminal attempt to exist there shall be met three conditions. These are intention, beginning of the execution of the crime and failure to achieve the intended result.

i. the act done shall be intentional

In order for a person to have been said attempted a crime and be held criminally liable, he must have done his act intentionally. That is to say he must be aware of and willing to commit the crime. If he lacks the knowledge and the desire in performing certain act, there may not be a criminal attempt. Accordingly, he may not be criminally held liable for attempt if his acts are attributable to his negligence. Thus, there is nothing like negligent attempt.

ii. beginning of the execution of the crime

Attempt is distinguished from preparatory acts since it heralds the beginning of execution of the crime. It is at the moment when the execution of the crime begins that stage of preparatory ends and attempt comes in to picture. However, it is not always an easy task to draw a line between preparatory acts and

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attempt. Sometimes, it is very hard to tell whether a certain act amounts to attempt or preparatory act. As a result a person may risk punishment for his preparation to commit a crime or may go free though he has done acts which constitute a criminal attempt. Therefore, it is crucial to have a clear understanding as to how the boundary between preparatory acts and attempt should be drawn. So where shall preparation stage ends and attempt begins? How shall we determine whether the actor has crossed the boundary of preparation and attempted the crime?

Obviously, there is no attempt unless the crime is in the course of being executed. That is to say the actor must have intentionally begun to commit the crime but has failed to achieve what he has intended to. Thus, there is no contention in holding that preparation ends and attempt comes when the execution of the crime begins. So at what moment shall the execution of the crime be deemed to have commenced? So far no consensus has been reached, however, agreement among criminal law writers and scholars in resolving this issue.

In view of the rationale that attempt is punishable for the danger it poses, scholars have addressed this issue “depending whether the danger is said to lie in what the attempter does or on what he is”. Accordingly some prefer to resolve the issue based on objective conception taking in to account the dangerousness of the act that is done by the attempter. Others opt for subjective conception which relies on the dangerousness of the attempter. Let’s see these conceptions as follows.

a/ Objective conception/approach/

According to this conception, the issue whether a crime is in the course of being executed shall be determined taking into account the objective

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dangerousness of the act committed by the actor. Regarding this issue Philip Graven has said the following.

There is no attempt unless an offence is in the course of being executed; unless the act done reveals not only that the doer has a criminal intent, but also that he is determined to carry it out, the doer may not be deemed to have a criminal intent which he is determined to carry out unless he does something which is neither equivocal nor remote.

From this excerpt it is possible to understand that the objective dangerousness of acts done by the actor is a yardstick to determine whether a crime is in the course of being executed. Thus, if those acts done by person objectively assessed are dangerous, the crime shall be deemed to have been in the course of being executed. Under this conception there are two tests by which we can determine that a crime is attempted. These are actual harm test and material proximity test.

According to actual harm test, a crime is attempted when the actor commits an act that is implied in the legal definition or aggravating circumstances of the crime. This approach is based on the assumption that the legislature envisages attempt while defining a crime and its aggravating circumstances considered both in terms of attempted and complete crimes. Therefore, whenever a person does anything which is described in the legal definition or aggravating circumstances of a crime, he shall be deemed to have attempted that crime. For example, if Mr. X stripes Miss B with intent to rape her, he shall be considered to have started the executing of the crime and be criminally held liable for attempted rape since his act is implied in the legal definition of crime of rape. Similarly, if a person is captured while trespassing the premise of another person with intent to commit theft, he shall be deemed to have begun the

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execution of the crime of aggravated theft since trespass is provided by law as an aggravating circumstance of theft,

Actually, this test is good at drawing clearly the boundary between attempt and preparatory acts. Nevertheless, it is narrow since it does not work good in relation to crimes which are not consisted of several acts and don't provide for aggravating circumstance.

On the other hand, the material proximity test bases itself on the principle that attempt is punishable for the danger involved in the acts done by the attempter. Accordingly, a person shall be considered to have attempted a crime when he puts legally protective interests in jeopardy. However it is not every act but only acts which put legal protected right in immediate jeopardy that mark the border between preparatory acts and attempt. For example, if a person with intent kill another person, fires his gun but missed him, or stabbed him with knife but caused a bodily injury, he shall be deemed to have attempted the crime of homicide.

Thus, in order for a person to have been said attempted a crime, he must be close enough to success. Whether a person is close enough to success shall be determined by taking in to account different factors. For instance, the commission last necessary act or physical proximity can help in assessing the closeness of success.

The material proximity test, though wider than actual harm test, is all the same too restrictive. For example, incomplete attempts may not be considered as attempt in light of this test for a legally protected interest is not in an immediate jeopardy.

b/ **subjective conception**

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This conception takes in to account the dangerous intent of the attempter to determine whether or not the crime is attempted. As per this conception the act is inseparable from the intent behind it. And it is based on this intent of the offender we should determine the moment at which the commission of the crime begins. Thus, a person shall be deemed to have attempted a crime when his acts indicate that he has an “irrevocable intent” to bring his criminal design to an end. In other words, he shall go beyond the “point of no return” by doing act which are decisive in his own judgment to achieve his criminal goal.

In this conception, it is a moral proximity rather than material proximity more relevant. It is immaterial whether what he does is capable of causing harm or how close he is to achieve his criminal design. What is most important is the criminal intent he has behind his act is irrevocable. If he does some timing which shows that he has an irrevocable criminal intent or has reached point of no return, the execution of the crime shall be deemed to have commenced. For example, if Mr. X aims his gun at Mr. Y putting his finger on the trigger, he shall be considered to have irrevocable intent and begun the execution of the crime.

These beings so regarding the two conceptions of attempt, let's see which one is adopted on FDRE Criminal Code. Article 27 (1) second paragraph provides when shall a crime be deemed to begun as follows.

The crime is deemed to begun when the act performed clearly aims, by way of direct consequence, at its commission.

From the reading of this provision it is very hard to tell with certainty which conception is incorporated in FDRE Criminal Code. However, the clause “the act performed clearly aims, by way of direct consequence, at its commission” seems to imply the objective conception. Nevertheless, taking into account the rationale that an attempter is to be punished not for the harm he caused rather

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for the dangerous behavior he exhibited, which signifies a subjective conception, it would be very hard to hold that Article 27 of FDRE Criminal Code has incorporated the objective conception. Furthermore, given that incomplete attempts are considered as a criminal attempt under Article 27/1/ and Article 28/1/, it would be irrational to rule out the application of subjective conception of attempt under Ethiopian criminal law. Therefore, it is reasonable to hold that both objective and subjective conceptions of criminal attempt are reflected under Article 27 of the FDRE Criminal Code.

iii. failure to achieve the intended result

Even in common parlance, the word attempt signifies failure to achieve a certain result. In legal parlance attempt implies the wrongdoer was unsuccessful to achieve the intended result. If he has completely committed the crime and attained the necessary result, there is no attempt rather complete crime. Thus failure to achieve the intended harm is a precondition for criminal attempt to exist.

The failure or the part of the actor to achieve his criminal design could be attributable to various reasons. It could be because, the attempter, to use the wordings of Article 27(1) paragraph 1, “does not pursue or is unable to pursue his criminal activity to its end or does not attain the result necessary for completion of the crime though he pursues his criminal activity to its end”. Based on these factors we can classify attempts in to complete and incomplete attempt

3.2.2 Incomplete Attempt

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Incomplete attempt refers to cases in which the attempter did not pursue out of his own will or was unable to pursue / for reasons beyond his control/ his criminal activity. Some times, the attempter might prefer not to perform the entire necessary act to accomplish his criminal design. For instance, Mr. X, after aiming his gun at Mr. Y with in tent to kill the latter, lowered his gun and left the latter where he stood. This indicates that Mr. X has abandoned the execution of his criminal design after he has already begun.

However, he shall be held criminally liable for attempted homicide since he was already beyond the point of no return when he renounced his criminal activity. Nevertheless, the punishment that he will be subjected to is to be assessed in accord with Article 28(1) of the FDRE Criminal Code which deals with renunciation.

The other case of incomplete attempt occurs where the attempter was prevented from carrying out all the necessary criminal activities for the attaining the intended result for reasons beyond his control. In other words, the attempter would have pursued his criminal activity to its end had he not been prevented by the circumstance beyond his control. He might be hindered by the counteract of the intended victim, third party's intervention or fortuitous event. For instance, while Mr. Y was about to strike Mr. X with stick if the latter snatched the stick from the former, the former shall be deemed to have committed incomplete attempt.

3.2.3 Complete Attempt

The attempter, though he has pursued his criminal activity to its end, may not succeed in achieving the result necessary for completion of the crime. In such a case; his act constitutes a complete attempt. Complete attempt presupposes that the attempter has performed all the acts necessary for the achievement of the intended result but failed to bring about the said result.

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The failure may be attributable to two reasons. One reason could be that the attempter chose to undo what he had done in order to achieve his criminal design by performing acts which could prevent the intended result from happening. For example, if Mr. X, after he had shot Mr. Y with intent to kill him, took the latter to hospital and spared his life, his act shall constitute a complete attempt. Thus, Mr. X shall be guilty of attempted homicide. Nevertheless, since he had repented and prevented the death of Mr. Y, his punishment shall be assessed in accordance with Article 28(2) of the FDRE Criminal Code which provides for active repentance.

The other reason the attempter may not succeed in achieving the intended result, attributable to circumstances beyond his control. The attempter, after having performed all the necessary acts for the achievement of the intended result, may not be able to bring about the intended result owing the circumstance beyond his control. To put it differently, the attempter could have achieved the intended result had it not been for the occurrence external circumstances of whatever nature on which he had no control. For example, Mr. K shot Mr. J with the intention to kill the latter, but the latter survived the shot; Mr. K would be liable for a complete attempt of crime of homicide.

3.2.3 Punishment of Criminal Attempt

Criminal attempt is always punishable as a matter of principle. However, this principle holds good only with regard to an offender who has attempted a crime in principal capacity. Persons who participated in secondary capacity, i.e., those merely attempt to instigate or assist in a crime, may not be criminally liable for attempt unless this is expressly, provided by law. Article 27(2), second paragraph affirms this assertion. A detail account of this issue will be given in our discussion on participation in the commission of a crime.

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As it is pointed out earlier on, the reason for punishing attempt is not the harm caused rather the danger involved in the acts of the attempter. And in many cases there is no difference between a person who has attempted a crime and a person who has completely committed a crime as far as their dangerous criminal behavior is concerned. For instance, a person who, with the intention to kill another, shot and missed his target has the same degree of dangerousness with a person who shot and killed another person intentionally. This is because had the former person not been a bad shot, he could have killed his target. It seems for this reason that Article 27(3) has provided that an attempter shall be subject to punishment which is prescribed for complete crime that he intended to commit.

Nevertheless, the punishment may be reduced within the limit provided by law where there are circumstances which justify the reduction according to second alina of Article 27(3) of FDRE Criminal Code. In reducing the punishment within the limit provided by law, courts shall take in to account “the stage reached in carrying out of attempt and the danger it represented” as per Article 31 of the FDRE Criminal Code.

Furthermore, the attempter may be subject to punishment reduced with out limit or relieved, in special cases from punishment where circumstances justify so. These circumstances are renunciation, active repentance and impossibility of completion of a crime as it can be read from Art. 28 and 29 respectively,

i. Renunciation

It may occur that the attempter, after having started the execution of the crime chose out of his will not to pursue his criminal activity to its end. In such a case the attempter shall be deemed to have abandoned his criminal activity. This is commonly referred as renunciation. Article 28 (1) FDRE Criminal Cod, provides how punishment should be assessed in cases of renunciation.

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*If a criminal **of his own free will** renounces the pursuit of his criminal activity the court shall reduce the punishment with in the limits provided (Art.179) or with out restriction (Art.180) if circumstances so justify. No punishment shall be imposed if the renunciation was prompted by reasons of **honesty or high motives**./emphasis added/*

It is possible to understand from the reading this provision that the law encourages criminals who have renounced their criminal design by imposing reduced punishment or no punishment. Renunciation refers to cases of incomplete attempt wherein the attempter, after he had begun the execution of the crime but before he had done the last necessary act for the completion of the crime, chose by his own free will not to carry out his criminal activity to its end.

Thus, an attempter in order to avail himself of Article 28(1) he must have decided by his own not to pursue his criminal design after he has reached the point of no return but before the last necessary act for the completion of the crime is done. For example, if Mr. X, after breaking into Mr. Y's house with intention of committing theft, runs away with out stealing any thing, thinking that it is not good to steal others' property, he shall be deemed to have renounced his criminal activity.

Depending on the reason why he has renounced his criminal design, the attempter may be subject to punishment which is reduced with or without restriction or in some cases no punishment may be imposed on him. Where the attempter renounced him criminal activity out of honesty or high motives, no punishment may be imposed on him.

In all other cases courts shall reduce the punishment taking in to account the motive which prompted the renunciation as per Article 31 of FDRE Criminal

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Code. Accordingly, if the attempter renounces his criminal activity spontaneously without having any motive behind, the punishment shall be reduced without restriction. On the other hand when the renunciation is not spontaneous and is not prompted by honesty or high motive rather fear of being caught, the punishment shall be reduced within the limit provided by law.

Dear student, you will properly understand what does reduced with or without limit mean when we discuss assessment of punishment.

ii. active repentance

The other circumstance in which the punishment that may be imposed on the attempter shall be reduced without restriction is active repentance. Article 28 (2) provides that:

If a criminal, having completed his criminal activity, of his own free will prevents, or contributes to prevent the casement result, the court shall without.

As it can be read from this provision, active repentance is one kind of complete attempt since the attempter has done all the necessary activities to achieve the intended result. It occurs when the attempter, after having done the last necessary act to achieve his criminal design, decided of his own free will to undo what he had done and performed counteracts which prevented or contributed to prevent the intended harm from happening. For example, if Mr. K, after having shot Mr. Y with the intent to kill, took the latter to hospital and spared his life, he shall be deemed to have actively repented.

Here, it should be noted that the attempter must succeed in preventing the intended result from occurrence so that he may avail himself of Article 28 (2) FDRE Criminal Code. If the result occurs despite his counteract to undo what he has done, there will be no active repentance. Rather, it will amount to rather

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sincere repentance which may be of some help in getting the punishment that will imposed on him reduced as per Article 82(1) (e) of FDRE Criminal Code.

Thus, in cases of active repentance the punishment that may be imposed on the attempter shall be reduced without restriction. And in determining the specific punishment courts shall take into account the motives that prompted the active repentances in accord with Article 31 of FDRE Criminal Code.

iii. impossibility of the completion of the crime

Sometimes the completion of a crime may be found impossible owing to the means used to commit the crime or the object against which the crime is to be committed. Article 29 of the FDRE Criminal Code has provided the following in relation to crimes impossible of completion.

1) When a criminal has attempted to commit a crime by means or against an object of such nature that the commission of the crime was absolutely impossible, the court shall, without restriction, reduce the punishment (Art.180)

2) No punishment shall be imposed when the criminal, from superstition or owing to simplicity of his mind, acted by using means or processes which could in no case have a harmful effect.

3) The above provisions of this article shall similarly apply to an instigator or an accomplice.

It is possible to understand from the reading of this provision that crime of impossible of completion special kind of complete attempt. And it occurs in relation to crimes of result where a criminal uses a means which absolutely in capable of achieving intended result or tries to cause harm on an object which

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could not be harm by the act done. In such a case the criminal shall be subjected to a punishment which reduced without restriction.

Nevertheless, no punishment may be imposed on the criminal when it is found that he used a means or a process which is naturally incapable of causing harmful effect due to his believe of superstition or simplicity of his mind. For instance Mr. X owing to simplicity of his mind adds a sugar in Mr. Y. s coffee with intent to kill the latter; similarly Mr. P, out of superstition, lights a candle and makes a prayer with intent to kill Mr. K. In both cases no punishment may be imposed on Mr.X and Mr. P since they used a means and process, respectively, which are naturally harmless.

Summary

In committing a certain crime, a wrongdoer embarks on different stages in his crime path. The commission of intentional crime springs from a mental process that begins with thought of committing a crime and ends with the decision to commit it. And the commission of a crime is completed when the perpetrator carried out his criminal design to its end. In between these two boundaries there are different stages a wrongdoer will pass through. These stages are marked by different acts of the wrongdoer. After he has made the decision to commit the crime, he will do preparatory acts which are necessary to make possible a crime. Those preparatory acts are not punishable except incases where the law has expressly provided or the acts by themselves constitute a complete crime. Any act of the actor which goes beyond preparation is punishable for it amounts to criminal attempt. For criminal attempt to exist the three preconditions, i.e. intention, beginning of the commission of the crime and failure to achieve the intended result, shall be present at the same time. Attempt is different from preparation for the acts done by the attempter unequivocally reveal the intention of the actor and are proximate to the intended result. However, it is not always easy to draw a line between attempt and preparatory act. And there is no

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consensus among scholars as to how this line should be drawn. Even if attempt is punishable as a matter of principle, the punishment that may be imposed on the attempter varies depending on reasons to which his failure to achieve intended result is attributable. Accordingly, if his failure is attributable to his renunciation, active repentance or the impossibility of the completion of the crime, the punishment that may be imposed on him shall be reduced with or without restriction and in special cases no punishment may be imposed on him.

Miscellaneous Questions

1. What are the degrees in the commission of the crime?
2. “Preparatory acts are not punishable.” Do you agree with this assertion? Why /Why not?
3. How should we draw the boundary between attempt and preparatory act?
4. Discuss the two conceptions of attempt.
5. What is the justification for punishing criminal attempt?
6. Discuss the distinction between complete and incomplete attempt?
7. Explain the legal effect of renunciation and active repentance.
8. Discuss crime of impossible of completion with relevant examples?

Questions taken from Lowenstein materials

Carefully analyze the following problem on light of your reading of this Chapter and the FERE Criminal Code. Organize your thoughts with care and support your conclusions with sound reasons.

I. Case

Several Years ago, in the year 1958 to be exact, there lived on a vast stretch of land in the mythical province of sharar in Ethiopian widely renowned but

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disliked man name Ato Habtamu. In those same days, quite nearby, dwelled two scoundrels of the names Ato washo and Ato ketati.

Any one who might have been passing the house of Ketafi and Washo on a certain night in that year probably would have overheard these angry words pass between them.

Ketafi :“Agreed, we must finish Habtamu but your plan will not
Succeed”

Washo: “O.K, then, if you won’t work with me, I will do it my own
way”

The rest of the story is well known to citizens far and wide in the province of sharar. Ato ketafi, in pursuit of his plan, lay in wait alongside a path that Habtamu often took on afternoon walks. When Habtamu was sighted approximately 100 Yards down the path, ketafi raised his club with which he intended to hit Habtamu, but immediately upon noticing that Habtamu was accompanied by another person, lowered the club and disappeared in to the woods.

Ato Washo, on the other hand, purchased a small amount of deadly poison and gave it to Ato fetto who was Habtamu’s cook telling him that it was a rare and delicious spice. Fetto, without examining the supposed spice, dropped it in to the bubbling *watt* being prepared for Habtamu’s dinner. Most fortunately, however, Habtamu returned home with out an appetite and so refused the deadly *watt*.

The question which came before the highest court of sharar, and which you are asked to analyze are the following. Considering each case separately, has Ato Ketafi, Ato washo, or Ato Fetto committed attempted homicide under FDRE Criminal Code?

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II. Identify which one is complete attempt and which one is incomplete attempt.

- a) X, standing next to haystack, lights a match and then blows it out upon discovering that he is observed.
- b) Y, places explosives at the side of X's driveway designed to explode when X's car trips a wire in the driveway; X does not return home that evening, and while removing the explosive, B accidentally trips the mechanism and is himself injured.

II. Identify which of the following are crimes of impossible completion.

- 1. A man shoots at a tree stump thinking it to be a person.
- 2. A doctor attempts to procure an abortion upon a woman who is not pregnant.
- 3. A man attempts the theft of his own umbrella thinking it is someone else.
- 4. A pickpocket reaches in to an empty pocket.
- 5. A man poisons a drink with too small a dose to kill his intended victim
- 6. A man has sexual relation with sixteen years old girl whom he believes to be eighteen years old
- 7. A sixty-seven year old man accused of rape raises and establishes a defense of impotency,

**CONDITIONS OF LIABILITY TO PUNISHMENT IN RESPECT OF
CRIMES**

Introductory Remarks

Dear student, it is hoped that in your reading on ingredients of a crime you have got hold of the fact that every contravention of a criminal law is not punishable. It is only when the actor violates a criminal law with a guilt state of mind that he shall be liable to punishment. This signifies that moral ingredient of a crime is decisive in determining whether a certain violation of a criminal law is punishable or not.

The presence of moral ingredient of a crime is dependent on the fulfillment of two requirements. These are responsibility and criminal guilt. Accordingly, person may not be liable to punishment unless he is responsible for his act. And a person who is responsible for commission of a certain act contrary to a criminal law may not be liable to punishment unless he has committed the act with guilt state of mind.

This Chapter is dedicated to deal with these two conditions of liability to punishment in respect of attempted and completed crime.

Objective

Having properly studied the explanations, analysis, illustrations and reasoning provided in this chapter, you will be able to;

- define criminal responsibility, absolute irresponsibility and limited responsibility

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- make a distinction between criminal responsibility and irresponsibility
- illustrate different cases of absolute irresponsibility and limited irresponsibility.
- explain what does a criminal quilt mean in cases of simple crimes.
- explain, illustrate and analyze criminal intention and criminal negligence.

4.1. Criminal Responsibility

A person who has committed a criminal act may not be liable to punishment unless he is found to be responsible for his act. Criminal responsibility is a necessary condition in order to make a wrongdoer liable to punishment. If this is so, what is criminal responsibility? Dear student! Your reading of this section will help you in addressing this and other similar issues. Thus, after you have done with your study of the explanation, illustration analysis, and reasoning given under this section, you will be able to:

- identify different methods by which we can define responsibility, absolute irresponsibility, and limited responsibility
- make a distinction among responsibility, absolute irresponsibility and limited irresponsibility
- analyze the legal effects of absolute and limited irresponsibility
- list down different causes absolute and limited irresponsibility

4.1.1. General Consideration on Criminal Responsibility

In criminal law, criminal responsibility is one of the most controversial issues which is so difficult even to define. This is because responsibility has to do with the state of mind of a person with reference to a certain time and a certain behavior.

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Defining responsibility is not restricted to a legal issue. It is also philosophical, psychological and medical issue. For this reason philosophers, psychiatrist, physicians and lawyers have tried for years to come up with agreed definition of responsibility but it was to no avail. It was found impossible to set a standard by which the responsibility of a person can be determined. That is to mean responsibility can not be defined in positive by describing who shall be considered as responsible. But an attempt can be made to define responsibility in the negative. This can be done by setting criteria, which, if satisfied, regard a person as irresponsible. Thus, one can understand criminal responsibility by understanding grounds of irresponsibility. However, there is still no agreement as to how grounds of responsibility shall be determined.

In criminal law literatures, there are commonly identified methods of defining criminal irresponsibility. These are biological method, psychological method and bio-psychological method.

The biological method defines criminal irresponsibility by listing down physical defects which could render a person irresponsible. On the other hand, psychological method defines criminal irresponsibility as incapacity to understand the nature of one's act or to control oneself. The combination of these two methods is bio-psychological method which regards a person as irresponsible if, at the time of commission of a crime, he was deprived of his mental faculties owing to certain biological defects.

The bio-psychological method is reflected in many modern criminal laws including ours. This method is more preferred than the other two methods for not only it is more precise but also it excludes other forms incapacity which are attributable to reasons other than mental diseases from the ambit of criminal irresponsibility.

4.1.2 Criminal Irresponsibility Under the FDRE Criminal Code

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Under Article 48(1) of the FDRE Criminal Code, it is clearly stated that criminal who are responsible for their acts shall be liable to punishment. This underscores that responsibility is a prerequisite for punishment and irresponsibility precludes punishment. However, like other countries' criminal law, ours too does not define criminal responsibility in the positive. Rather, it defines it in the negative by specifying grounds by which a person shall be regarded as irresponsible.

Hence, a person may not be considered as responsible if one the grounds by the law are present. *Acontrario*, he shall be regarded as irresponsible if he suffered from one of these grounds at the time of committing his act. From this it follows that every person is presumed to be criminally responsible unless it is found that a person is suffering from one of grounds of irresponsibility.

The Ethiopian criminal law has adopted the bio-psychological method in specifying grounds of irresponsibility. It has also classified criminal irresponsibility as absolute irresponsibility and partial responsibility.

4.1.2.1. Absolute Criminal Irresponsibility

Article 48(2) of the FDRE Criminal Code has provided the following regarding absolute criminal irresponsibility.

*A person is not responsible for his acts under the law when, owing to age, illness, abnormal delay in his development, deterioration of his mental faculties, one of the cause specified under Article 49 sub-article 1 or any other similar **biological cause**, he was **incapable at the time of his act, of understanding the nature or consequences of his act, or regulating his conduct according to such understanding**. (emphasis added)*

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As it can be understood from the reading of this provision, the Ethiopian criminal law has adopted the bio-psychological method to determine criminal irresponsibility. Indeed the law has set the biological causes and their psychological effects which will render a person irresponsible.

Article 48(2) has provided the list of biological causes in an illustrative manner. This includes illness which in this context refers to not only mental diseases but also physical diseases which have the effect of depriving mental faculties. Age is the other biological cause that is included in the listing. Here, it refers not to infancy for the latter is treated differently under Article 52. Instead, it refers to old age for senility may cause deprivation of mental faculties. The other biological cause is abnormal delay in the wrongdoer's development. This has to do with idiotism, cretinism, the consequences of deafness, dumbness, sleeping sickness, etc. Deterioration of the offender's mental faculties is the other biological factor listed under the same provision. This may occur due to poison, intoxication by alcohol or drugs, hypnosis or somnambulism.

In addition to those biological causes listed down under Article 48(2), cross reference has been made to those biological causes provided under Article 49(1) FDRE Criminal Code. This includes derangement, for example hysteria, and abnormal or deficient condition which may be caused by alcoholic intoxication.

It is also noted that biological causes must have the effect of absolutely depriving the wrongdoer's capacity, at the time of the commission of the crime, to understand the nature or consequences of his act or to regulate his behavior in accordance with his understanding to be regarded be as absolutely irresponsible. In other words, the biological cause must have deprive of his intelligence so that he could not absolutely a ware of the nature or the consequences of his act or his volition to such a degree that he could not absolutely regulate his conduct in accordance with his understanding.

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Therefore, in order for a person to have been said absolutely irresponsible for his criminal act, one of the above mentioned or similar biological causes must have rendered him incapable of understanding the nature or consequences of his act or regulating his behavior in accordance with his understanding, at the time of the commission the crime.

It has been pointed out earlier on that persons who are responsible for their criminal act that are liable to punishment. *Acontrario*, absolutely irresponsible persons are not liable to punishment. However, this does mean that they will always go free. Courts are supposed to order in respect of irresponsible person's measures of treatment, like medical care or protection, such as confinement. Nevertheless, it should be noted that these measures are not punishment. They are intended to prevent the commission of further crime by eradicating causes that derived the actor to commit the crime or by restraining him so that he may not have a chance to commit a further crime.

4.1..2.2. Partial Responsibility

The fact that a person is not absolutely irresponsible does not mean that he is responsible. He may be partially responsible and partially not. Partial responsibility refers to cases which fall between responsibility and absolute irresponsibility.

The causes for partial responsibility are same as that of absolute irresponsibility. However, unlike the latter, in the former the actor is not absolutely /entirely/deprived of his capacity to understand the nature or consequences of his act or to regulate his conduct in accordance with his understanding. For this reason, the actor will remain to be responsible for his act; however, he will not be fully liable to punishment since he was partially deprived of his intelligence

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and volition. Rather he will be liable partially liable to punishment. In this regard Article 49(1) of the FDRE Criminal Code provides the following.

He who owing to one of the causes specified under Art.48 sub-article (2) above, or derangement or an abnormal or deficient condition or any other similar biological cause was, at the time of his act, partially incapable of understanding the nature or consequences thereof or regulating his conduct according to such understanding shall be practically liable to punishment specified for the crime committed. The court shall determine the sentence in accordance with Art.180.

From the reading of this provision, it is possible to understand that in order for a person to have been said partially responsible, like the case of absolute irresponsibility, the biological causes and psychological effects which affects the intelligence and volition of the wrongdoers shall be present together at the time of the commission the crime. However, unlike absolute irresponsibility, in cases of partial responsibility the degree of deprivation of the wrongdoer's intelligence or volition is not complete rather partial. On account this, the actor shall be partially liable to the punishment which is prescribed for the crime he has committed. Accordingly he shall be subject to a punishment which is reduced without restriction.

However, it is not always an easy task for courts to determine whether a person who being tried was absolutely irresponsible or partially responsible at the time of the commission of the crime. Where there is doubt as to the responsibility of the accused person courts are under obligation to obtain expert evidence or order an enquiry to be conducted regarding the character, antecedent and circumstances of the accused person. In doing so courts are to be guided by Article 51 of the FDRE Criminal Code.

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Dear student! You are strongly recommended to read Article 51 of the FDRE Criminal Code and discuss it with your friends.

Finally, there is one point that should not be left without being mentioned in relation to both absolute irresponsibility and partial responsibility. That is what has been provided under Article 50 of FDRE Criminal Code. According to this provision, a wrongdoer, may not avail himself Article 48 and 49 where he, “in order to commit a crime or knowing he could commit a crime, intentionally put himself in to a condition of absolute irresponsibility or of limited responsibility by means of alcohol or drugs or any other means.” The detail account of this provision is provided in relation defense intoxication under chapter six which deals with affirmative defenses.

4.1.2.3 Infancy and juvenilia delinquency

Needless to mention, a criminal responsibility has to do also with age, not in the sense it used under Article 48 and 49, of the wrongdoer at the time of the commission of the crime. The law, taking in to account their physical and mental immunity, exonerates infants from the provisions criminal law and considers them as irresponsible for their acts. The period of infancy varies from country to country. Under Ethiopian criminal law it runs from birth to the age of nine. According to Article 52 FDRE Criminal Code, persons who are not attained the age of nine are to be regarded as infants. As such, they shall not be held criminally responsible and the provision of the Code shall not be applied to them.

However, the fact that infants are exonerated from the provisions of the Criminal Code does not mean that they are allowed to commit a crime. It is just to mean that it is not the business of criminal law to deal with wrongs done by

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infants. However, parents, schools or guardianship authorities are supposed to take appropriate steps where a crime is committed by infants.

After the period of infancy has lapsed, then comes the period of juvenile delinquency. It is at this period criminal minority begins. It extends from the age of nine to the age 18 years. Unlike infancy, juvenile delinquency does not exclude criminal responsibility a person was between the age of nine and fifteen at the time of the commission of the crime, he shall be responsible for his criminal act.

Nevertheless, the punishment that will be imposed on must not be the one prescribed for adult criminals. Article 53(1) of the FDRE Criminal Code, clearly provided that the penalties and measures that shall be imposed on him shall be only those prescribed by Articles 157 and 168 of the Criminal Code. Therefore, it is possible to conclude that juvenile delinquency, though, may not exclude the imposition of punishment, which is attached to the crime committed, on the criminal.

4.2. Criminal Guilt

Dear student, it is believed that you have realized from your reading of the preceding section that it is only persons who are responsible for their criminal acts shall be liable to punishment. Nevertheless, not all persons who are responsible for their criminal act are liable to punishment. There is one more requirement to be met for these persons to be liable to punishment. That is the requirement of criminal guilt.

Criminal guilt represents the moral ingredient of a crime in the absence of which a wrongdoer may not be liable to punishment. Article 57(1) of FDRE Criminal Code provides that “no one can be punished for a crime unless he has been found guilty thereof under the law”. This indicates that, unlike

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responsibility, there is no presumption of criminal guilt. A person who is responsible for his act can not be punished unless it is proven that he has committed his act with guilty state of mind. Thus, a mere breach of a criminal law provision may not constitute punishable crime if the breach is not accompanied by a guilty state of mind.

As per Article 57(1), second paragraph, a person who is responsible for his criminal act shall be deemed to be guilty when he commits the act intentionally or negligently. Intention and negligence are the two states of mind that have been envisaged by Ethiopian criminal law in determining criminal guilt of accused persons. Thus, if a person has either intentionally or negligently committed a crime, he shall be deemed to have a guilty state of mind at the time of the commission of the crime. However, if he has committed a criminal act with out having either of these guilty states of mind or his criminal act is attributable to accident or force majeure, as per Article 57(2), he shall not be convicted and punished by the criminal law.

However, it is not always an easy task to determine the guilt of an accused person for it has to do with his state of mind at the time of the commission. The FDRE Criminal Code has provided rules by which the criminal guilt of a wrongdoer, i.e. whether he has acted intentionally or negligently, shall be determined.

This section is dedicated to deal with the two types of criminal guilty, i.e., intention and negligence. After having done with your reading of this section, you will be in position:

- to explain, illustrate and analyze criminal intention
- to make a distinction between direct and indirect intention,
- to explain, illustrate and analyze criminal negligence,

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- to compare and contrast indirect intention, advertent negligence and in advertent negligence.

4.2.1. Criminal Intention

Criminal intention is the higher form of criminal guilt that makes an offender liable to punishment. So, how should we determine whether an accused person had a criminal intention at the time of the commission of crime? What is the requirement that should be met in order to say a crime is committed intentionally? Article 58 of the FDRE Criminal Code has addressed these and similar issues.

Art 58 criminal intention

(1) A person is deemed to have committed a crime intentionally where

a. he performs an unlawful and punishable act with full knowledge and intent in order to achieve a given result, or

b. he being aware that his act may cause illegal and punishable consequences, commits the act regardless that such consequences may follow

(2) An intentional crime is always punishable save in cases of justification or excuse expressly provided by law (Articles 68 and 81).

(3) No person shall be convicted for what he neither knew of or intended, nor for what goes beyond what intended either directly or as possibility, subject to the provisions governing negligence.

As it can be read from sub-article 1(a) and (b) there are two standards by which a criminal intention of a wrongdoer can be determined. The first standard has to do with direct intention whereas the second refers to indirect intention. Thus,

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under Ethiopia criminal law criminal intention is of two kinds, i.e., direct and indirect intention. Let's see search as follows.

4.2.1.1. Direct Intention

As per Article 58(1)(a), direct intention is consisted of full knowledge and intent as to the nature and consequences of his act. Hence, a wrongdoer shall be deemed to have committed a crime intentionally when he commits the crime with full knowledge and intent. In this context knowledge refers to awareness and intent implies desire or will. Let's have a brief account of each of these elements.

i. Awareness

Direct intention primarily implies awareness. With respect to crimes of conduct, a person may not be deemed to have committed a crime intentionally unless he is aware of circumstances which render his act a crime. For example, if Mr. X has a sexual intercourse with Mrs. Y not knowing she is his aunt, he may not be deemed to have intentionally committed crime of incest as it is described under Article 654 of FDRE Criminal Code. This is because Mr. X is not aware of the circumstance, the blood relation that he has with Mrs. Y, which render could render his act a crime.

In relation to crimes which require the achievement of a certain result for its completion, a person may not be deemed to have intentionally committed a crime unless he was aware of the fact that the said consequence would follow from his act. For instance, Mr. B doesn't intentionally commit homicide if he shoots, not knowing his target is a human being, and kill another person. Similarly, Mr. X may not deemed to have intentionally committed theft if he believes that thing he abstracts is his own. In both cases the actor was not aware

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of the consequences that would follow from his act. For this reason they may not be liable to intentional crime.

Nothing has been provided under Art. 58(1) as to how awareness shall be established. Nevertheless, it is possible to establish awareness by employing “the common knowledge” standard. Accordingly, a wrongdoer shall be presumed to have the awareness if the material fact under consideration is a matter of common knowledge. For instance, it is a matter of common knowledge that a poison can kill, alcohol can intoxicate or a gun can kill.

ii. Desire

Desire or will is another element of direct intention. In addition to his awareness of the circumstances which render his act a crime, or the consequences that follow from his act, a wrongdoer must have desired the way he did his act or the consequences that his act brought about in order to say he has intentionally committed the crime. This indicates that the actor must have performed the crime voluntarily.

In cases where the crime committed by the wrongdoer does not require the achievement of a given result for its completion, desire is inferred from awareness. Hence a person shall be deemed to have desired the commission of the crime when he commits it knowing the circumstance that could render it criminal. For instance, if Mr. A knowingly utter abusive language towards Mr. Z, he shall be deemed to have insulted Mr. Z intentional. This is because he was aware of the fact that the language he used is derogative.

On the other hand, when the achievement of a given result is required for the completion of a crime, in order to say a person has intentionally committed a crime, he not only must perform an act voluntarily but also foresees and desires the result that will be brought about by his act. The result is said to have been

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desired when a person performs his act with a view to achieve the result. For instance, if Mr. A knowingly shoots Mr. Y on his chest, it is clear that Mr. A desired the death of Mr. Y since he has acted in a way he can bring about the death of the latter. Similarly, if Mr. X puts arsenic in a cup of milk knowing that arsenic is fatal and the milk will be drunk by Mr. Y, he shall be deemed to have desired the death of the latter.

However, a person may also be considered to have committed a crime with direct intention though he has not desired the actual result. This may happen when an act brings about several results which are, to knowledge of the wrongdoer, inevitable to happen in the circumstances though not desired. For instance, if Mr. X with the intention to cause a bodily injury to Mr. Y, throws a stone through the closed window of the latter's car, Mr. X shall be regarded to have a direct intention to commit crime of bodily injury and damage to property

4.2.1.2. Indirect Intention

Article 58 (1)(b) provides for indirect intention, which is commonly described by the Latin expression as *dolus eventualis*. A person shall be deemed to have an indirect intention where "he being aware that his act may cause illegal and punishable consequences, commits the act regardless that such consequences may follow". This provision sets two elements for indirect intention to exist.

The first element is awareness of the possibility that his act may cause illegal and punishable consequence. The awareness of a person in indirect intention is different from the one that is required in case of direct intention. In the latter case the actor has a full knowledge that his act will certainly or nearly certainly cause harm. Whereas in the case of indirect intention, the actor knows only the possibility that his act may cause harm. Therefore, a person may not be deemed to have an indirect intention unless he knows the possibility that his act might bring about a harm which is illegal and punishable.

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The other element is acceptance of the possible illegal and punishable consequence that may follow from his act. That is to say, the actor, having foreseen the possible consequences that his act may bring about, performs the act accepting such consequences. It is this acceptance element which makes indirect intention different from advertent or conscious negligence. Of course, indirect intention is similar with advertent negligence since in both cases a wrongdoer is aware of the possibility that his act may bring about illegal and punishable consequences. However, their difference lies on the point that in the case of indirect intention the actor accepted the possible illegal and punishable consequence of his act while performing the act whereas in the case of advertent negligence the actor performs his act rejecting the possibility that his act may bring about harm.

Therefore, a person may not be deemed to have indirect intention unless he knew, while performing his act, the possibility that his act may bring about illegal and punishable consequence and accepted the occurrence of the possible consequences of his act. This can be illustrated by the following examples. Assume that Mr. X with intent to cause property damage set fire on Mr. Y's house. And at the time of setting the fire Mr. X knows that Mr. Y is inside the house and foresees the possibility, that his act may bring about the death of Mr. Y if he doesn't manage to escape the fire. In such a case Mr. X shall be deemed to have an indirect intention to kill Mr. Y if he accepts the possibility that his act may bring about the death of Mr. Y while setting the fire on Mr. Y's house.

4.2.3. Liability to punishment of Intentional Crimes

Art. 58(2) of FDRE CC clearly stated that intentional crimes, whether committed with direct or indirect intention, are always punishable. However,

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this principle is subject to justification and excuses. Accordingly, a person may not be subjected to punishment even if he has committed a crime intentionally where he successfully invoked justifications and excuses as provided by law. Justifications and excuses are affirmative defenses by which a person who has committed intentional crime can be relieved from punishment. A detail account of them is provided under Chapter 2 of the second module.

In relation to liability to punishment of intentional crime, one point should not be left with out being addressed. That is what has been stated under Art 58(2) FDRE Criminal Code. As per this provision a person may not be subject to punishment for “what he neither knew or intended, nor for what goes beyond what he intended either directly or as possibility”. The first limb, i.e. “what he neither knew or intended”, is pretty obvious; since the actor did not perform his act intentionally for he lacked the awareness and /or desire, he may not be punished for intentional crime. However, he may be punished for negligence ware this is expressly provided so by the law.

The second limb refers to “what goes beyond what intended directly or as a possibility”. This happens where a person, though intended to cause harm, has brought about a harm more than what he intended to. In such a case, he may not be punished for the harm that goes beyond what he intended to directly or as a possibility. For instance, Mr. Y, with intention to cause bodily injury to Mr. X, strikes the latter with a stick. As a result of Mr. Y’s strike Mr. X dies. In this case Mr. Y may not be liable for intentional homicide. However, he may be liable to negligent homicide.

4.2.2 Criminal Negligence

As a matter of rule, it is intentional crimes which entail criminal liability and punishment. However, in some circumstances a person may be held criminal

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liable for committing a crime negligently. Thus, what does criminal negligence mean?

Since what constitute a criminal negligence varies from case to case depending on the facts of each particular case, it is very hard to come up with a precise and universally agreed definition on the very notion of negligence.

Nevertheless, negligence can be described in any given case as “a failure to exercise care or sufficient care as a result of which harm is done which was not desired but could and should have been expected to occur in the ordinary course of things”.

Regarding criminal negligence, the FDRE criminal code states the following.

Art.59 Criminal Negligence

1. A person is deemed to have committed a criminal act negligently where he acts

a) by imprudence or in disregard of the possible consequences of his act while he was aware that his act may cause illegal and punishable consequences, or

b) by a criminal lack of foresight or without consideration while he should or could have been aware that his act may cause illegal and punishable consequences.

A person is guilty of criminal negligence when, having regard to his personal circumstances, particularly to his age, experience, education, occupation and rank, he fails to take such precautions as might reasonably be expected in the circumstances of the case.

(2) Crimes committed by negligence are liable to punishment only if the law so expressly provides by reason of their nature, gravity, or the danger they constitute to society.

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The court shall issue sentence according to the degree of guilt and the dangerous character of the criminal and according to his realization of the possible consequences of his act or his failure to appreciate such consequences as he ought to have done.

The above Provision is an extension of Article 58(3) which states that a person may be liable to punishment on the ground of criminal negligence even if he has not intentionally committed a crime. Thus, if a person's state of mind, at the time of committing a crime doesn't fall under criminal intention, then it should be considered, where negligence is punishable, whether it amounts to criminal negligence as stipulated under Article 59 of FDRE Criminal Code. This Article has provided for two kinds of criminal negligence. Sub-article 1(a) provides for advertent or conscious negligence and sub-article 1(b) introduces inadvertent or unconscious negligence.

4.2.2.1. advertent negligence

According to Article 59(1)(a), advertent negligence refers to cases where a person, being aware of the possibility that his act may cause illegal and punishable consequences, he failed to exercise care or sufficient care for either of two reasons. It could be because he disregarded or rejected the possibility that his act might cause harm and believed the harm he foresees will not occur or owing to his imprudence, he believed that the care he exercised was sufficient to prevent the harm he foresaw as a possibility.

The first reason, rejection or disregard of the possibility his act may cause harm, makes advertent negligence different from indirect intention. In both cases the actor is aware of the possibility that his act may bring about illegal and punishable consequences. However, in the case of advertent negligence the actor disregards the possible occurrence of the harm he foresaw whereas in the case of

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indirect intention the actor accepts the possible harm that may be caused by his act.

The above explanation can be illustrated by the following examples. Mr. Y was burning his haystack in his yard. He noticed that the wind below on Mr. X house direction and foresaw but rejected the possibility Mr. X's trees catching fire. The trees caught fire and burned Mr. X's house. In this case Mr. Y shall be deemed to have committed the crime in state of advertent negligence. Similarly, Mr. X, being aware of the possibility of hitting someone, drives his car over the speed limit with a belief that the harm he foresaw will not occur. Contrary to his belief he runs over a pedestrian causing the immediate death of the latter. In this case also, Mr. X shall be considered to have committed the crime in state of advertent negligent.

4.2.2.2 Inadvertent or unconscious Negligence

Art.59 (1) (b) of FDRE Criminal Code provides for inadvertent negligence. It may occur where a person fails to exercise care because he does not know at all that care is required at that particular circumstance. The actor does not foresee what he should or could have. As a result he failed to exercise care for he has no the awareness that his act may bring about illegal or punishable consequence. For example, Mr. X aims a pistol at Mr. Y and pulls the trigger believing it is unloaded while it is actually loaded. And Mr. Y dies as a result. In this case Mr. Y shall be deemed to have committed the crime in state of inadvertent negligence for he does not foresee the possibility that pistol could be load and fail to take care by not pulling the trigger before checking out it is unloaded.

The presence of inadvertent negligence is to be considered after it has been ascertained that the actor did not foresee the possible consequences of his act. Nevertheless, the fact that the actor didn't foresee the exact consequence of his act doesn't mean that he was in state of inadvertent negligence. For example,

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Mr. X, while deriving his car over the speed limit, for saw and rejected the possibility of running over a pedestrian. But collide with another car. In this case even if Mr. X did not exactly foresee the possibility of colliding with another car while driving over the speed limit, he shall be deemed to have committed the crime with advertent negligence for he has already foresaw that his act may cause illegal and punishable consequence.

Furthermore, in cases where an act brings about two or more illegal and punishable consequences, advertent and inadvertent negligence may occur at the same time since some of them may have been foreseen while others not. For example, Mr. Y sets a fire on Mr. X house and foresees but rejected the possibility that his act may cause the death of Mr. X .The fire kills Mr. X and his sister whom Mr. Y does not know to be there. In this case Mr. Y shall be deemed to have acted with advertent negligence in respect to death of Mr. X and with inadvertent negligence with regard to the death of Mr. Y's sister.

4.2.2.3 conditions of criminal liability of negligence

Not every single case of failure to exercise care or sufficient care owing to lack of foresight or imprudence entails a criminal liability. In modern criminal law, negligence is not punishable unless it is criminal. And it can not be deemed to be criminal unless the actor was under duty to exercise care.

The duty to exercise care doesn't necessarily emanate from the law. Generally speaking, it flows from the duty of behaving as a reasonable man does. Here, reasonable man refers to an ideal ordinary person with "lessons of common experience". Thus, the doer must exercise care which is expected from reasonable man so that he may not be found guilty of criminal negligence.

However, the standard of care that should be exercised by the doer in a particular case is not uniform and inflexible. Since common experience, i.e., the

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objective condition, may not perfectly coincide with individual experience, personal circumstances of the doer, i.e., subjective condition, shall also be considered in determining his criminal negligence. This refers to subjective condition of criminal negligence.

The FDRE Criminal Code has incorporated both conditions under Article 59(1) second paragraph. It states that regard shall be had to “his ***personal circumstances, particularly to his age, experience education, occupation and rank***” i.e., subjective condition and to “***what might be reasonably expected in the circumstances of the case***” i.e., objective standard, in determining the criminal negligence of the doer.

Therefore, a person may not be deemed to have been guilty of criminal negligence for a mere reason that he has failed to exercise care that is expected from a reasonable person. The personal circumstance of the doer should be taken into account. Thus for a person to be guilty of criminal negligence he should have failed to take not only the precaution that might be reasonably expected in the circumstance but also the precaution which a person in his position should have taken.

In contrast to intentional crimes, which are punishable as a matter of rule, crimes committed negligently are not always punishable. As per Article 59(3) of FDRE Criminal Code, crimes committed negligently are punishable where the law has expressly provided taken into account the gravity or the danger the criminal act poses to society.

SUMMARY

One of the ingredient elements of a crime is moral element. Moral element has to do with the state of mind of the actor at the time of the commission of a

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crime. It is consisted of responsibility and criminal guilty which are the two conditions for liability to punishment of a crime. A person may not liable to punishment unless he is responsible for his criminal act. And a person who is responsible for his act may not be punished for a crime unless he committed it with guilt state of mind. Criminal guilt is of two kinds. These are criminal intention and criminal negligence. Criminal intention, whether it is direct or indirect, is always punishable save in cases of justification or excuses as stipulated by the criminal law where as criminal negligence be advertent or inadvertent, is not punishable unless there is an express provision of the criminal law to that effect.

Miscellaneous Exercises

1. What is criminal responsibility?
2. Discuss the three methods by which criminal irresponsibility can be defined. Which method is adopted by the FDRE criminal code?
3. Explain the requirements of criminal irresponsibility under Ethiopian criminal law.
4. Discuss the distinction between absolute irresponsibility and partial responsibility.
5. Do you think infancy is one ground of absolute irresponsibility? Why or why not?
6. Describe criminal guilt as per the FDRE Criminal Code.
7. Analyze the requirements of criminal intention under the FDRE Criminal Code.
8. Compare and contrast direct intention and indirect intention.
9. Analyze criminal negligence in light of the FDRE Criminal Code.
10. Discuss the distinction between indirect intention and advertent negligence.
11. Compare and contrast advertent and inadvertent negligence.

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12. “Criminal negligence is not punishable as a matter of rule” Do you agree with this assertion? Why or why not?

Questions taken from Lowenstein Material

I) Ato X, not wanting to injure any one , but wishing to arrive at his girl friends house on time, drives through the piazza at 100 km/hr causing the death of child. Do you think Ato X would be liable for intentional homicide? Why or why not?

II) Determine in each of the following cases whether the actor is guilt of direct intention, indirect intention, advertent negligence or inadvertent negligence under Arts.58 and 59 of the FDRE Criminal Code. Assuming he is either a responsible adult living in Addis Ababa, or a rather poor farmer of sixty, years who has recently come to Addis Ababa from the mountains north of Goudar to visit his son’s family.

1. Abebe, while playing with a gun that he thinks is unloaded, points at a friend and pulls the trigger causing his friends death.

Solomon, avenging an insult to his son, shoots a man who uttered the insult.

2. Belay hunter, sighted a lion but also notices another hunter nearby not wanting to lose his lion, he shoots any way, kills the other.

3. Sisay, lights candles in his home and, being called away, leaves them burning, causing a fire which burns down his neighbor’s house,

4. Kebede shoots into a tej bet, intending to frighten the occupants, but in fact kills a customer.

5. Chalie, believing that he is a good driver and will not hurt any one, drives through the piazza at 90 km/hr and kills a pedestrian.

III) You are a public prosecutor within a certain jurisdiction in Ethiopian. Several relatives of a certain old man come to your office and relate the following sad facts.

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Ato A, a responsible official in a government ministry, was quite late to an appointment with a foreign diplomat. He hailed a taxi and, soon reaching his destination rapidly opened the door of his taxi without looking to his rear. An automobile approaching from behind at a normal distance and speed, in order to avoid hitting Ato A, had to swerve to the side of the road where unfortunately an old man was standing. Nearby called a policeman who rushed to the site of the accident. In his attempt to help the old man, who was then conscious, the policeman lifted him up to carry him toward a hospital. He had not, however gripped him firmly and the old man again fell to the ground which aggravated his condition and led to his death soon thereafter.

Whom should you think criminally liable as per Article 543 of the FDRE Criminal Code? Carefully relate, wherever relevant, the facts to the law. Remember that “causation” may be essential to your holding.

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